SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021 Revised September 8, 2025

STUDENT ENROLLMENT

Children who are at least four (4) years of age but not more than five (5) years of age on or before September 1 and have not attended a public-school kindergarten may be enrolled in either a half-day or full-day (if offered) non-compulsory, early childhood program free of charge.

Children who are more than five (5) years of age on or before September 1 may be permitted to attend the early childhood program, free of charge, if the Marrs Elementary School Principal determines that the placement is in the child's best interest. Best interest determinations will be made based on objective, non-discriminatory factors and such placement decisions will not be made to circumvent serving students under the Individuals with Disabilities Education Act.

No child shall be enrolled in kindergarten unless the child has reached five years of age on or before the first day of September of the year the child intends to enroll. No child shall be enrolled in the first grade unless the child will have reached the age of six (6) on or before September 1 of the school year. Age may be verified by a birth certificate, parent's statement, a physician's statement, or previous educational records.

The superintendent or designee will be responsible for the receipt of all applications for admission, the conduct of registration procedures and for certification that all admission requirements and prerequisites have been properly met by the student.

Termination of attendance before graduation from high school or before reaching the age of 18 may be permitted by mutual consent of the superintendent and the parent, legal custodian, or legal guardian of the student.

Regardless of the student's grade, the district will make reasonable efforts to enroll students at the school site nearest their residence. In the event the superintendent determines that it is in the district's best interest, the superintendent may assign/transfer a student to an alternate site. These discretionary assignments/transfers may only be used to serve a district interest and may not be used for parent-requested changes.

A student who has been suspended out-of-school from a public or private school in the State of Oklahoma or another state for a violent act or an act showing deliberate or reckless disregard for the health or safety of faculty or other students shall not be entitled to enroll in this school district until the terms of the suspension have been met or the time of suspension has expired.

This district shall not provide education services in the regular school setting to any student who has been removed from any public or private school in Oklahoma or any other state until the district determines that the student no longer poses a threat to himself or others. The district may consider providing alternative educational services such as home-based instruction.

If the student is on an individualized education plan (IEP), education services will be provided according to that plan.

Reference: OKLA. STAT. tit. 70 § 1-114
70 O.S. §5-132
70 O.S. §18-108, §18-111

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: September 13, 2021; August 14, 2023; August 12, 2024

STUDENT RESIDENCY

The district is established for the purpose of serving the educational interests of resident students. This includes homeless students, students who are not documented citizens, and students whose parents/guardians are not documented citizens. The district will not inquire into a student or parent/guardian's citizenship status as a part of enrollment, and will only use information regarding a student's living situation to better serve the student. The district will periodically review its practices and the documents it seeks as a part of establishing residency within the district to ensure that its processes are not overly burdensome and do not discourage the enrollment of homeless students and/or undocumented students.

Definitions

For purposes of this policy, the terms listed below have the following meanings:

"Residence," "residency" and "legal residence" mean the student's present place of abode, provided that it is a place where important family activities (such as sleeping, eating, working, relaxing, and playing) take place during a significant part of each day. Mere presence alone is not sufficient to establish residency. Documentary evidence that may be submitted to establish residency is identified below.

"Person having legal custody" means a person who is legally responsible for the care of the child pursuant to the order of a court or placement by a governmental agency responsible for making custody determinations and/or placements.

Basic Residency Requirements

State law provides that a child's residence for school purposes is the school district in which the (1) parents, (2) guardian or (3) person having legal custody of the child holds legal residence. Children who are foster children are granted residency in the district if they attended the district prior to entering foster care, if their current/prior foster family is/was a resident of the district, or if another child in their current foster home attends school in the district pursuant to a transfer. The district does not permit students to establish residency based on the mere affidavit of a person who has assumed permanent care and custody of the child under OKLA. STAT. tit. 70 § 1-113 or based on an attorney in fact affidavit under OKLA. STAT. tit. 10 § 700.

The district does not permit students to establish residency based on the affidavit of a person who has assumed permanent care and custody of the child under OKLA. STAT. tit. 70 § 1-113.

Procedure for Resolving Residency Disputes

The district recognizes that there may be occasions when there is a dispute regarding residency. Upon enrollment in the school system the district will verify that the student is a resident of the district or is otherwise entitled to attend school in the district for any reason authorized by law. As a part of this verification process the district will obtain an address from each student or the student's parent, guardian, or person having legal custody of the child. In providing an address to the district that is within the district's boundaries the student and student's parent, guardian, or person having legal custody of the child represent that this address is the student's residence. The district may also require, in order to verify residency, certified copies of court orders, guardianship documents, written agreements and affidavits relating to the care, custody and control of the student and any other information the district deems relevant.

If at any time a district administrator has a reasonable belief that the reported residence may not be the residence of the child for purposes of school attendance, the administrator shall notify the student's parent, guardian, or person having legal custody of the child that there is a question regarding the student's legal residency. The student's parent, guardian, or person having legal custody of the child shall be given an opportunity to submit information regarding the student's residency to the district's residency officer. All notices required by this policy shall be in writing. Additionally, reasonable alternative arrangements for documenting communications will be made for those persons who are visually impaired or otherwise unable to communicate in writing.

Information or documentation to prove student residency in the district shall include but not be limited to proof of provision of utilities, payments of ad valorem taxes, local agreements or contracts for purchasing/leasing housing, driver's licenses, income tax returns, notes, mortgages, contracts and any other source of proof that is not in conflict with statutory provisions relating to the residence of students.

Any question or dispute as to the residence of a student not deemed to be a "homeless student" shall be determined by the residency officer and the board of education pursuant to the following procedures:

1. The student's parent, guardian, or person having legal custody of the child must notify the residency officer in writing of the review request within three (3) school days from the date of written denial of admittance or from the date of written notification that the student is considered not to be a resident of the district. Upon receipt of a request for review, the residency officer shall allow the parent, guardian, or person having legal custody to provide additional pertinent information in accordance with the district's criteria and the statutory provisions regarding residency. This information must be submitted with the request for review.

2. The residency officer must render a decision and notify the student's parent, guardian, or person having legal custody of the child of the decision and reasoning therefore in writing within three (3) school days of receipt of the request for review.

3. If the student's parent, guardian, or person having legal custody of the child disagrees with the residency officer's decision, such person shall notify the

residency officer in writing within three (3) school days of his or her receipt of the residency officer's decision. The residency officer will submit his or her findings and all documents reviewed to the board of education. The board of education will review the decision and the documents submitted on behalf of the district and the student and will render a decision at the next board meeting. The decision of the board of education shall be the final administrative decision.

4. In an effort to place students in school as quickly as possible, timelines shall be followed unless due to emergency circumstances both parties agree to an extension of timelines.

Miscellaneous Policy Provisions

Hearings involving more than one student where students are related or residing in the same household may be consolidated at the discretion of the residency officer and the board of education.

If the residency dispute involves an 18-year-old student, all notices will be delivered to the student.

If already enrolled and attending school in the district, a student or students involved in a dispute related to the student's residency may remain in school until available appeals are exhausted when the student or the student's parent, guardian, or person having legal custody of the child has filed an appeal in the manner and within the time permitted by this policy.

The residency officer shall be in charge of maintaining the files related to a residency dispute, ensuring that the principals or others directly involved in such a dispute forward their records of the dispute following their involvement, and otherwise keeping all communications involving the dispute intact.

The district's residency officer is the Assistant Superintendent.

The board of education understands that there may be some instances where residency may be established on a date other than the date the student was enrolled in the district. For any period during which a student is enrolled in the district, but is not a resident of the district, the district may charge tuition if it is established that the student's parent, guardian, or person having legal custody of the child knew or should have known that the child or children who are the subject of the residency dispute were not residents of the district. The tuition shall be based on a per capita cost of educating a student in the district during the preceding year. This issue may be raised along with other issues related to the residency dispute and shall be heard in the same manner.

The district shall provide for educational services for homeless children as required by law.

The district reserves the right to require reverification of student residency at the beginning of each school term.

A copy of this policy shall be provided to the student's parent, guardian, or person having legal custody of the child as soon as possible following the inception of any residency dispute.

Special Definitions and Procedures Applicable to
Homeless Children and Youth

The *McKinney-Vento Homeless Assistance Act* (the "Act") applies to all children and youth who lack a fixed, regular, and adequate nighttime residence, such as a children living in homeless shelters, domestic violence shelters, runaway and homeless youth shelters, transitional living facilities, cars, campgrounds, motels or children and youth living doubled up, and homeless and migratory children.

The Act provides that homeless children and youth:

- do not need a permanent address to enroll in school;
- have a choice of school placement;
- cannot be denied school enrollment because school records or other enrollment documentation are not immediately available;
- have the right to participate in all federal, state, or local programs and activities for which they are eligible;
- cannot be isolated or separated from the mainstream school environment; and
- have the right to receive prompt resolution of any dispute regarding educational placement.

Therefore, in accordance with the Act, the district shall make reasonable efforts to identify homeless children, encourage their enrollment, and eliminate existing barriers to their education that may exist. The district will not stigmatize or segregate homeless students and youth, and these students shall have access to the same public school programs available to other students of the district. The district will identify and provide equal access to secondary education and support systems for homeless students, runaway youths and youths separated from public schools. The district will also work to identify and remove those barriers which prevent youths from receiving appropriate credit for full or partial coursework satisfactorily completed while attending a prior school.

Definitions

For purposes of the Act, and this policy, "homeless children and youth" means students who lack fixed, regular and adequate nighttime residence, and includes:

1. children and youths who are sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason; are living in motels, hotels, trailer parks, or camping grounds due to the lack of alternative adequate accommodations; are living in emergency or transitional shelters; or abandoned in hospitals;

2. children and youth who have a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings;

3. children and youths who are living in cars, parks, public spaces, buildings, substandard housing, bus or train stations, or similar settings; and

4. migratory children (as such term is defined in section 1309 of the Elementary and Secondary Education Act of 1965) who qualify as homeless.

Programs, Activities, and Social Services

The district will provide each homeless student or youth those programs, activities, and social services available to other district students which are determined to be in the student's best interests. The programs, activities, and services include the following:

- Preschool;
- Special education;
- Title I;
- Limited English Proficiency;
- Before and after school care;
- Academic and extracurricular activities;
- Magnet schools;
- Summer school;
- Career and technology education;
- Advanced placement;
- Online learning;
- Charter school;
- School meals; and
- Transportation.

The district will waive those fees which may present a barrier for homeless students or youths, including those associated with the school meal programs and transportation.

Enrollment, Records, and Immunizations

The Act provides that homeless children and youth, individually or through a parent or guardian, may choose to attend the school in the area in which they are currently living. The district's residency officer will determine whether a student is a homeless child or youth for purposes of establishing residency and promptly advise the parent, guardian or person having legal custody of the child of the decision, both orally and in writing, if possible. If there is no such person, the residency officer will advise the student. Whenever possible, the district will comply with the wishes of either the parent, guardian, person having legal custody of the child, or student regarding enrollment. The district will enroll each homeless student and permit his or her full participation in all school programs, whether or not the student is accompanied by a parent, guardian or person having custody of the child, and without proof of residence, current immunizations and traditional enrollment documentation, such as school records and medical/immunization records. The district's homeless liaison may assist the student and school in obtaining those items. A parent, guardian or person having legal custody of the child who disagrees with the residency officer's determination may appeal the decision to the board of education under the procedure identified in this policy. If there is no parent, guardian or person having legal custody of the child available, the student may appeal the decision.

Appeals Procedures

The district will make every effort to resolve disputes regarding homeless children at the lowest level possible by utilizing the following process:

1. At the time a homeless student seeks enrollment, the district will notify the student or his/her family of these procedures and provide the student/family with a copy of this policy.

2. The district will promptly notify the district's homeless coordinator that a homeless student seeks enrollment, and will seek to involve the coordinator in decisions regarding the student's education.

3. Students/families who disagree with a decision regarding the student's education may meet with the coordinator for an informal resolution. The coordinator will notify the student/family that a written complaint may be submitted within five (5) days (or longer if agreed upon by the parties).

4. If the coordinator receives a written complaint, the coordinator will prepare a decision (plan of action) and provide it to the student/family within five (5) days of receipt of the written complaint. The coordinator will also notify the student/family of the right to appeal to the superintendent.

5. Students/families who are still dissatisfied with a decision regarding the student's education may file a written appeal with the superintendent within five (5) days of receipt of the coordinator's plan. The superintendent will meet with the student/family within five (5) days of receipt of the appeal. The superintendent will issue a decision within five (5) days of the meeting with the student/family. The superintendent will also notify the student/family of the right to appeal to the board of education.

6. Students/families who are still dissatisfied with a decision regarding the student's education may file a written appeal with the board of education by submitting a written notice to the superintendent within five (5) days of the superintendent's decision. The appeal will be placed on the next agenda (or the following agenda, if the appeal is received after the agenda posting deadline) and the board's decision is final at the district level. Students/families who are still dissatisfied with a decision regarding the student's education may file an appeal with the Oklahoma State Department of Education utilizing the procedures established by the OSDE.

A standard form adopted by the Oklahoma State Department of Education to identify any student who is a homeless child or youth shall be completed **annually** at enrollment by the parent or guardian of a student or by the student if he or she is not in the physical custody of a parent or guardian. A district shall report the results of the form-collected data to the Oklahoma State Department of Education no later than June 1 of each year.

The homeless status of a child or youth may be verified by the district's McKinney-Vento homeless liaison. Verification, ***at a minimum***, shall consist of the following steps:

1. The child or youth shall be known to the person verifying his or her housing status; and

2. If verifying the status of a child or youth under eighteen (18) years of age, the person verifying shall:
    a. check the National Missing and Unidentified Persons System (NamUs) referenced in OKLA. STAT. tit. 74, § 151.3 for the name of the child or youth,
    b. send a letter by return receipt mail to the last known address of the parent or legal guardian of the child or youth informing the parent or legal guardian that the person verifying is assisting the child or youth in obtaining a REAL ID Noncompliant Identification Card, which shall be valid for a period of four (4) years from the month of issuance, and
    c. if no response from the parent or legal guardian objecting to the child or youth obtaining a REAL ID Noncompliant Identification Card is received within fifteen (15) business days, the person may prepare written verification stating that the child or youth is homeless.
    d. fifteen (15) business days, the person may prepare written verification stating that the child or youth is homeless.

The written verification shall be printed on the district's letterhead and shall be dated and signed by the person verifying the status and notarized.

Reference: OKLA. STAT. tit. 70, § 1210.210; 10 O.S. § 601.6d; OKLA. STAT. tit. 74, § 151.3

Establishing Residency

A student shall be considered in compliance with residency provisions of this policy and state law if he or she is a student whose parent or legal guardian is transferred or is pending transfer to a military installation within the state while on active military duty pursuant to an official military order. The parent or legal guardian of such a student must provide proof of residence in the school district within ten (10) days after the published arrival date provided on their official documentation. The following may be used to establish proof of residency:

1. a temporary on-base billeting facility,
2. a purchased or leased home or apartment, or
3. federal government or public-private venture off-base military housing.

State law provides that transitioning military children placed in the care of a noncustodial parent or other person standing in loco parentis, may attend school in the school district in which the noncustodial parent or person standing in loco parentis to the transitioning military child holds legal residence. Similarly, transitioning military children placed in the care of a noncustodial parent or other person standing in loco parentis may continue to attend the school in which the student was enrolled while residing with the custodial parent.

A special power of attorney relating to the guardianship of a military child and executed under applicable law shall be sufficient for purposes of enrollment and all other actions requiring parental participation and consent.

Enrollment

For a student whose parent or legal guardian is transferred or is pending transfer to a military installation within the state while on active military duty pursuant to an official military order, the district shall accept applications by electronic means, including enrollment in a specific school or program within the district and course registration.

The district will promptly accept unofficial or "hand-carried" educational records and transcripts in lieu of official education records and transcripts for transitioning military children. Upon receipt of such records, the district will promptly enroll the transitioning military child. However, upon enrollment, the district will request official educational records and transcripts from the school in the sending state. The district's residency officer will determine whether a student is a transitioning military student for purposes of establishing residency and promptly advise the parent or other person standing in loco parentis of the decision, both orally and in writing, if possible. A parent or other person standing in loco parentis who disagrees with the residency officer's determination may appeal the decision to the board of education under the procedure identified above.

Grade Level Placement

Transitioning military children, including children entering kindergarten, shall be able to enroll in the same grade level in which they were enrolled in the sending state, regardless of age, time of transfer or age requirements of the receiving state.

Course Level and Educational Program Placement

To the extent that this district is in a receiving state, the district may subsequently perform course placement and educational program evaluations of a transitioning military student. However, the district will initially place the transitioning military student in courses and programs comparable to those in which the student was a participant while in the sending state, including, but not limited to, Honors, International Baccalaureate, Advanced Placement, Gifted and Talented, English as a Second Language, Special Education and vocational, technical and career pathway courses. The district will make these accommodations whether or not the student has fulfilled the necessary prerequisites in the district or receiving state.

Extracurricular Activities

When appropriate, the district will provide transitioning military children the opportunity to participate in extracurricular participation, regardless of application deadlines.

Immunizations

Transitioning military children shall have thirty (30) days from the date of enrollment to obtain any immunizations required by Oklahoma law. For a series of immunizations, such children must obtain initial vaccinations within thirty (30) days.

Tuition

The district may not charge tuition to a transitioning military child placed in the care of a noncustodial parent or other person standing in loco parentis who lives in a school district other than that of the custodial parent if the parent or other person standing in loco parentis lives within the boundaries of this district.

Reference: 42 U.S.C. §11301 et seq.; OKLA. STAT. tit. 70 §§ 510.1, 1-113, 8-103.1 (2021)

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: September 13, 2021; December 13, 2021; August 10, 2022; August 14, 2023; August 12, 2024; September 8, 2025; August 10, 2026

STUDENT TRANSFERS

A request for a transfer into this district initiated by or on behalf of a nonresident student will be approved or refused in accordance with this policy. The school district will not accept or deny a transfer based on ethnicity, national origin, gender, income level, disabling condition, proficiency in the English language, measure of achievement, aptitude or athletic ability. Receipt of applications will be documented by the district so that the district may review those applications in the order submitted for purposes of capacity limitations.

Transfers that have previously been approved by the school district will remain in effect for future school years unless the district provides notification to the parent or legal guardian that the transfer is not going to be continued for an upcoming school year due to disciplinary action or attendance issues. The district will not require parents resubmit a new application each school year and will advance the previous application of an enrolled student amending only the grade placement of the student.

A transfer may be requested at any time in the school year. State law does limit the ability of a student to transfer to no more than two (2) times per school year to one or more school districts in which the student does not reside. Exceptions to this limit will exist for students in foster care. Students are legally entitled to reenroll at any time in his or her school district of residence. Any brother or sister of a student who transferred in the previous school year may attend the school district to which their sibling transferred as long as the school district has capacity in the grade level and the sibling does not meet a basis for denial as listed below. A separate application must be filed for each student so that the district can timely consider requests in the order applications are received. A student who has attended the district as a resident student for at least three (3) years prior to then becoming eligible to apply as a transfer student shall be allowed to transfer into the district regardless of capacity, and so long as the student does not meet one or more of the bases for a transfer denial as set forth in this policy.

It is the policy of the board of education that any legally transferring student shall be accepted by the district under the following circumstances:

1. The district has the capacity to accept the student at the grade level at the school site;
2. The transferring student has not been disciplined for:
    a. violation of a school regulation,
    b. possession of an intoxicating beverage, low-point beer, as defined by Section 163.2 of Title 37 of the Oklahoma Statutes, or missing or stolen property if the property is reasonably suspected to have been taken from a student, a school employee, or the school during school activities, or
    c. possession of a dangerous weapon or a controlled dangerous substance while on or within two thousand (2,000) feet of public school property, or at a school event, as defined in the Uniform Controlled Dangerous Substances Act.

3. The transferring student does not have a history of absences. "History of absences" means ten or more absences in one semester that are not excused for the reasons provided in 70 O.S. § 10-105 or due to illness.

By the first day of January, April, July and October, the board of education shall establish the number of transfer students the district has the capacity to accept in each grade level for each school site within the district. The number of transfer students for each grade level at each site that the district has the capacity to accept will be posted in a prominent place on the school district's website. The district shall report to the State Department of Education the number of transfer students for each grade level for each school site which the district has the capacity to accept.

A student shall may be allowed to transfer to a district in which the parent or legal guardian of the student is employed 70 O.S. § 8-113.

The district will approve or deny the application and notify the parent of the student of the determination in writing within thirty (30) days of receiving an application. The school district shall enroll transfer students in the order in which they submit their applications. If the number of student transfer applications exceeds the capacity of the district, the district shall select transfer students in the order in which the district received the application. Students who are the dependent children of a member of the active uniformed military services of the United States on full-time active-duty status and students who are the dependent children of the military reserve on active duty orders shall be eligible for admission to the school district regardless of capacity of the district. Students shall be eligible for military transfer if:

1. At least one parent of the student has a Department of Defense issued identification card; and
2. At least one parent can provide evidence that he or she will be on active-duty status or active-duty orders, meaning the parent will be temporarily transferred in compliance with official orders to another location in support of combat, contingency operation or a national disaster requiring the use of orders for more than thirty (30) consecutive days.

If the transfer application is accepted, the district shall notify the parents of the acceptance. The parent shall provide the district with written notification that the student will be enrolling within ten (10) days of notification of acceptance. Failure to notify the school district within ten (10) days of acceptance shall result in the cancellation of the transfer. The district will provide a written noticed of the cancellation to the parent of the student immediately upon cancellation. If accepted, a student transfer is granted for the existing school year and may continue to attend in future years. At the end of the school year, the district may deny continued transfer of the student due to disciplinary reasons or a history of absences. Written notice of the intention to deny continued transfer of the student shall be given to a parent of a student no later than July 15. The parent may appeal the denial of a continued transfer.

Appeal Process

If a transfer request is denied by the school district, the district shall provide notification of the denial in writing to the parent by either hand-delivery, by U.S. Mail or electronic mail. The notification shall include:

1. An explanation including but not limited to any citation to the statute, regulation, or school district policy under which the denial was made;
2. A copy of the policy adopted by the district for determining the number of transfer students the school district has the capacity to accept;

3. A copy of 210:10-1-18.1 from the Administrative Code; and
4. The date upon which the appeal will be due.

If a transfer request is denied by the administration, the parent or legal guardian of the student may appeal the denial within ten (10) days of notification of denial to the board of education. If notification was hand-delivered, the appeal period shall begin the day after the notification is delivered. If notification is sent by U.S. Mail, the appeal period shall begin three (3) days after the notification is mailed. If notification is sent via electronic mail, the appeal period shall begin the day after the notification is sent. The board of education shall consider the appeal at its next regularly scheduled board meeting if notice is provided prior to the statutory deadline for posting the agenda for the meeting. The board of education shall accept an otherwise untimely appeal if a parent of a student can establish that they did not receive actual notice of the notification denying the transfer request, and the appeal was submitted within ten (10) days after the parent of the student actually received notice.

The appeal to the board of education shall be submitted to the office of the superintendent. The appeal shall include the following:

1. The name, address and telephone number of the parent of the student and the student for whom the appeal is being taken;
2. The date the district gave notice denying the transfer request;
3. The basis for appealing the decision of the school district; and
4. The name, address and telephone number of the legal representative, if applicable.

During the appeal, the board of education will meet with the administration and parent or legal guardian of the student in executive session. While in executive session the administration will explain why the transfer was denied, and the members of the board will be able to ask questions of the administration. The board will then hear from the parent or legal guardian as to why the transfer should have been approved. The members of the board will be able to ask questions of the parent or legal guardian. The administration and the parent or legal guardian will be excused from the executive session while the board deliberates on the appeal. The board will return to open session and will vote to approve the denial or overturn the denial of the transfer.

If the board of education votes to deny an appeal of a request to transfer, the board of education shall instruct the superintendent to provide notification of denial in writing to the parent of the student by either hand-delivery, by U.S. Mail, or by electronic mail. The notification shall include:

1. An explanation, including the legal citation to the statute, regulation, or school district policy under which the denial was made;
2. A copy of the policy adopted by the board of education for determining the number of transfer students the district has capacity to accept;
3. A copy of the State Board of Education's prescribed form for an appeal; and
4. A copy of 210:10-1-18.1 which identifies the Accreditation standard for appealing the denial of a student transfer.

If the board of education votes to uphold the denial of the transfer, the parent or legal guardian may appeal the denial within ten (10) days of the notification of the appeal denial to the State Board of Education. The parent or legal guardian shall submit to the State Board of Education and to the superintendent of the district, a notice of appeal on the form prescribed by the State Board of Education. The superintendent shall immediately provide a copy of the appeal to each member of the board of education. Upon receipt of notice of an appeal, but not later than five (5) days prior to the date at which the State Board of Education is scheduled to consider the appeal

the board of education may submit a written response to the appeal. Responses should not exceed five (5) pages. If not submitted by the parent, the board of education shall provide a copy of the policy adopted to determine the number of transfer students the district has the capacity to accept in each grade level for each school site within the district. The parent and the school district will have an opportunity to appear in person or by authorized representative or by attorney to address the State Board at the meeting.

A.

Inter-District Transfer Application Requests

A parent or guardian may request an inter district (outside of where you live) at any time of the school year. For an upcoming school year, the inter district transfer portal opens on June 1st. Applications for transfer shall be processed in the order in which they are received and must be completed by the parent of a student on a properly completed online application specified by the State Board of Education, which can be found at https://oklahoma.gov/education.html Use search bar to find "student transfers" page. The term "parent" means the parent of a student or person having custody of the student as provided for in OKLA. STAT. tit. 70, § 1-113(A)(1). Upon receipt of the application, the district shall stamp the application with the time and date on which it was received to ensure that the District can review applications in the order in which they are received. The application shall also be filed with the superintendent of the District if the receiving school district is within this state or with the State Board of Education for transfers to school districts in another state.

Subject to the special considerations applicable to a student on an Individualized Education Program ("IEP") pursuant to the Individuals with Disabilities Education Act (20 U.S.C. §§ 1400 et seq.) ("IDEA") as set forth below, a transfer shall be automatically approved if a student's resident district does not offer the grade level the student is entitled to pursue.

A transferring student from another school district that offers the grade the student is entitled to pursue may seek a transfer to the same grade offered by the district. The transferring student will be allowed to attend a District school site that has not exceeded its capacity of the transferring student's grade level. If there are more than one District school sites available for the transferring student, the district retains the sole discretion to determine the school site the transferring student will attend.

Any child in the custody of the Oklahoma Department of Human Services in foster care who is living in the home of a student who transfers, may attend the district of the transferred student as long as the district has capacity and the sibling does not meet a basis for denial as set forth in this policy. Except for a student in the custody of the Oklahoma Department of Human Services in foster care, a student shall not transfer more than two (2) times per school year to one or more school districts in which the student does not reside, provided that the student may always reenroll at any time in his or her school district of residence.

A student who is deaf or hearing-impaired and who wishes to transfer to a school district with a specialized deaf education program may submit a transfer application at any time and may transfer to the receiving school district at any time during the school year.

A transfer shall be automatically approved if a student's parent or legal guardian is employed by the district, regardless of District capacity, and so long as the student does not meet one or more of the bases for a transfer denial as set forth in this policy.

B.

Special Considerations as to Transferring Student on an IEP

Prior to approving an application for a transfer student who is a child with a disability, as defined in 34 C.F.R. § 300.8, the district will establish (a) the availability of the appropriate program, staff, and services for the transferring student, and (b) conduct a joint conference with the IEP team at the transferring student's current school. The purpose of conducting these activities is to determine whether—at the time the transferring student's application is received—the district can provide the transferring student with a free appropriate public education in the least restrictive environment as required by the IDEA. In the event the district exceeds its capacity at all school sites for the grade level of a transferring child with a disability, the district shall "hold" a place for the transferring student in the order in which the transferring student submitted his or her properly completed application. In the event an opening occurs, a decision on the transfer will be made after consideration of the factors above.

Transfers made for the purpose of providing a free appropriate public education (FAPE) to special education students pursuant to OKLA. STAT. tit. 70, § 18-110(E) and OKLA. STAT. tit. 70, § 13-101 are not considered Open Transfers subject to this policy.

If a request to transfer a student with disabilities to a school district other than the school district of residence of the student pursuant to the Education Open Transfer Act is denied, the following provisions shall apply:

The parent or legal guardian of a student with disabilities or an adult student with disabilities who is age eighteen (18) or older but under the age of twenty-two (22) may appeal the denial within ten (10) days of notification of the denial to the receiving school district board of education. The receiving school district board of education shall consider the appeal at its next regularly scheduled board meeting; and

If the receiving school district board of education denies the appeal, the parent or legal guardian of the student with disabilities or an adult student with disabilities who is age eighteen (18) or older but under the age of twenty-two (22) may appeal the denial within ten (10) days of notification of the appeal denial to the State Board of Education. The parent or legal guardian of the student with disabilities or the adult student with disabilities shall submit to the State Board of Education and the superintendent of the receiving school district a notice of appeal on a form prescribed by the State Board of Education. The appeal shall be considered by the State Board of Education at its next regularly scheduled meeting, where the parent or legal guardian of the student with disabilities or the adult student with disabilities and a representative from the receiving school district may address the Board. The State Board of Education shall promulgate rules to establish the appeals process authorized by this subsection which shall align with rules promulgated pursuant to 70, § 8- 101.2.

The district's board of education shall annually submit to the State Department of Education the number of transfer requests for students with disabilities approved and denied and whether each denial was based on availability of programs, staff, or services.

C.

Determination of Grade Level Capacity

The superintendent of schools, or his/her designee, shall determine the criteria to be used in determining grade capacity for each school site, including the capacity for any full- time virtual education program offered by the District. The District's capacity determinations are attached hereto as Exhibits A and B. Each school site's grade level capacity and the capacity of any full-time virtual education program offered by the District shall be (a) approved by the board of education prior to the first day of January, April, July and October of each school year, and (b) published in a prominent place on the District's website and reported to the State Department of Education.

REFERENCE: 70 O.S. §1-114
70 O.S. §1-113
70 O.S. §5-117.1
70 O.S. §8-101, et seq.
70 O.S. §24-101, et seq.; §24-102
Family Education Rights and Privacy Act
Atty. Gen. Op. No. 87-134, April 1, 1988
State Accreditation Standards 210:10-1-18 and 210:10-1-18.1

Skiatook Public Schools

Transfer Policy Capacity Determinations 2026-27 SY, Quarter 1

Exhibit A:

Site	Grade level	Total Grade Size
Marrs Elementary	Pre-K	120
	Kindergarten	200
	1st Grade	200
	T-2	15
Skiatook Elementary	2nd Grade	200
	3rd Grade	200
Skiatook Intermediate Elementary	4th Grade	200
	5th Grade	200
Newman Middle School	6th Grade	200
	7th Grade	200
	8th Grade	200
Skiatook High School	9th Grade	200
	10th Grade	230
	11th Grade	200
	12th Grade	170

1. Special Education caseload requirements and class size will also be used to determine student capacity for students on Individual Education Plans (IEP). Parent's failure to provide current Special Education records and identify their child as having an IEP will invalidate the transfer request.

2. Skiatook Schools will accept transfer requests for the next school year **starting June 1** of the current school year. The transfer request will not be approved or denied until the capacity data is determined for each grade level within the district. The capacity determination for a new school year will take place after the school year begins.

3. Open transfers previously granted by the board will remain in effect unless the board of education takes action to deny a future year's attendance based upon capacity, discipline, or attendance as addressed within this policy.

4. In addition to completing the application form as specified by the State Board of Education, applicants must submit their discipline and attendance records from their resident district and/or the district they have attended. A transfer application submitted without these required documents will be incomplete and will not be considered.

Skiatook Public Schools

Transfer Policy Skiatook Virtual Academy (SVA) Capacity Determinations 2026-27 SY, Quarter 1

Exhibit B:

Site	Grade level	Total SVA Spots Available
Newman Middle School	6th – 8th Grade	5
Skiatook High School	9th - 12th Grade	15

1. Special Education caseload requirements and class size will also be used to determine student capacity for students on Individual Education Plans (IEP). Parent's failure to provide current Special Education records and identify their child as having an IEP will invalidate the transfer request.

2. Skiatook Schools will accept transfer requests for the next school year **starting June 1** of the current school year. The transfer request will not be approved or denied until the capacity data is determined for each grade level within the district. The capacity determination for a new school year will take place after the school year begins.

3. Open transfers previously granted by the board will remain in effect unless the board of education takes action to deny a future year's attendance based upon capacity, discipline, or attendance as addressed within this policy.

4. In addition to completing the application form as specified by the State Board of Education, applicants must submit their discipline and attendance records from their resident district and/or the district they have attended. A transfer application submitted without these required documents will be incomplete and will not be considered.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY Revised: September 13, 2021; September 8, 2025	Students Adopted: August 9, 2021; Revised August 10, 2026

CHILDREN OF ACTIVE-DUTY MILITARY MEMBERS

Students who are the dependent children of a member of the active uniformed military services of the United States on full-time active duty status and students who are the dependent children of a member of the military reserve on active duty orders shall be eligible for admission to the school district of their choice if he or she is a student whose parent or legal guardian is transferred or is pending transfer to a military installation within the state while on active military duty pursuant to a valid military order. Students shall be eligible if at least one parent of the student has a Department of Defense-issued identification card.

Students who currently reside outside of a district they select for admission shall be treated by the receiving district as residing within the receiving district for purposes of enrollment.
If the enrolling student is transferring with on an IEP, an individualized family service plan, or a Section 504 plan, the district shall take the necessary steps including, but not limited to, the transfer of records and any prior evaluations, the performance of reevaluations, if necessary, and meetings to ensure that comparable services are in placed prior to the student's first day of school in the state.

REFERENCE: 70 O.S. §8-103.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: October 11, 2021; September 8, 2025

STUDENT BEHAVIOR

Discipline Code

The following behaviors at school, while on school vehicles or going to or from or attending school events will result in disciplinary action, which may include in-school placement options or out-of-school suspension:

1. Arson

2. Altering or attempting to alter another individual's food or beverage

3. Assault (whether physical or verbal) and/or battery

4. Attempting to incite or produce imminent violence directed against another person because of his or her race, color, sex, pregnancy, gender, gender expression or identity, national origin, religion, disability, veteran status, sexual orientation, age, or genetic information by making or transmitting or causing or allowing to be transmitted, any telephonic, computerized or electronic message

5. Attempting to incite or produce imminent violence directed against another person because of his or her race, color, sex, pregnancy, gender, gender expression or identity, national origin, religion, disability, veteran status, sexual orientation, age, or genetic information by broadcasting, publishing or distributing or causing or allowing to be broadcast, published or distributed, any message or material

6. Academic Misconduct, including, but not limited to, cheating, plagiarism, unauthorized collaboration, alteration of academic materials or other academic misbehavior

7. Complicity in misconduct by others, including, but not limited to, attempting to or encouraging others to commit prohibited conduct. Apathy or acquiescence in the presence of prohibited conduct is violative of this policy.

8. Conduct that threatens or jeopardizes the safety of others

9. Cutting class or sleeping, eating or refusing to work in class

10. Disorderly conduct, including behaving in a disorderly, lewd, indecent manner or breaching the peace on school property or in school-sponsored

activities. Examples include, but are not limited to, obscene language, profanity, inappropriate behavior or gestures, indecent exposure, nonconsensual photography, video, or audio recording of another person on school premises or at school-sponsored events when recording causes or is likely to cause injury or distress

11. Disruption of the educational process or operation of the school— as to disruptive behavior in the classroom specifically, engaging in behavior that a reasonable person would view as substantial or repeated interference with the instructor's ability to teach the class or the ability of other students to benefit from instruction

12. Extortion

13. Failure to attend assigned detention, alternative school or other disciplinary assignment without approval

14. Failure to comply with state immunization records

15. False reports or false calls

16. Fighting

17. Forgery, fraud, or embezzlement

18. Gambling

19. Gang related activity or action

20. Harassment, intimidation, and bullying, including gestures, written or verbal expression, electronic communication or physical acts

21. Hazing (whether involving initiations, admission into, affiliations with, or as a continued involvement in a group or organization or not) in connection with any school activity, regardless of location. Hazing, includes, but is not limited to, any activity that recklessly or intentionally endangers the mental or physical health or safety of a student. Likewise, engaging in any action or activity that causes or is likely to cause physical or mental discomfort or distress that may demean, degrade, or disgrace any person, regardless of location, intent or consent of participants is violative of this policy.

22. Immorality

23. Inappropriate attire, including violation of dress code

24. Intimidation or harassment because of race, color, sex, pregnancy, gender, gender expression or identity, national origin, religion, disability, veteran status, sexual orientation, age, or genetic information, including but not limited to: (a) assault and battery; (b) damage, destruction, vandalism or defacing any real or personal property; or threatening, by word or act, the acts identified in (a) or (b)

25. Physical, emotional, or mental abuse of, or threat of harm to, any person on school owned or controlled property or at any school attended, sponsored, or supervised event or function. This includes antisemitism, which is a certain perception of Jews, which may be expressed as hatred toward Jews.

26. Physical or verbal abuse, including, but not limited to, physically restraining or transporting someone against their will

27. Possession or distribution of a caustic substance

28. Possessing, distributing or viewing obscene materials, including electronic possession, distribution or viewing (sexting)

29. Possession of synthetic urine, a warmer or any other item with the intent to use that item to tamper with a drug or alcohol test

30. Possession, without prior authorization, of a wireless telecommunication device

31. Possession, threat or use of a dangerous weapon[1] and related instrumentalities (i.e., bullets, shells, gun powder, pellets, etc.)

32. Possession, claimed possession, use, manufacture, distribution, sale, purchase, conspiracy to sell, distribute or possess or being in the chain of sale or distribution, or being under the influence of (a) alcoholic beverages, low- point beer (as defined by Oklahoma law, i.e., 3.2 beer), (b) any mind altering substance, except for medications taken for legitimate medical purposes pursuant to district policy, including but not limited to prescription medications for which the individual does not have a prescription, or medications used outside their intended therapeutic purpose, (c) paint, glue, aerosol sprays, salts, incense and other substances which may be used as an intoxicating substance, or (d) any substance believed or represented to be a prohibited substance, regardless of its actual content.

33. Possession or claimed possession of illegal and/or drug related paraphernalia

34. Possession, claimed possession, distribution, or claimed distribution of supplements, prescription medicine, and/or non-prescription medicine while at school and school related functions without prior district approval

35. Purchasing, selling and/or attempting to purchase or sell prescription and non-prescription medicine while at school and school related functions

[1] **Students who** are members of JROTC and are participating in an authorized school program is may. with prior approval from the principal, bring an inoperable weapon to school for the sole and exclusive purpose of participating in the program. Students may only possess the inoperable weapon in a manner consistent with the authorization to participate in the program.

36. School Bus or Transportation Misconduct – While riding on any District school bus or other district-provided mode of transportation, engaging in any of the following acts is prohibited: (i) throwing any object; (ii) placing any part of one's body out of window (bus moving or stationary); (iii) eating, drinking, and/or possessing food or drink while on a bus (lunches taken to school are excluded provided they are packed in a container and the container is not opened on the bus); (iv) failure to remain seated (feet on floor, facing front); (v) disrespectful words, comments or actions toward the driver or other passengers; (vi) blocking the aisle; (vii) pushing while loading/unloading or while bus is approaching; (viii) transporting unauthorized items; (ix) any type of harassment; (x) excessive noise; and (xi) improper street crossing during loading or unloading.

37. Sexual or other harassment of individuals including, but not limited to, students, school employees, volunteers

38. Theft

39. Threatening behavior, including but not limited to gestures, written, verbal, or physical acts, or electronic communications

40. Truancy

41. Use, possession, claimed possession, distribution or selling marijuana or marijuana related products in any form. "Marijuana" is defined as provided for in the district's policy on Medical Marijuana, Hemp & Cannabidiol (CBD)

42. Use, possession, claimed possession, distribution or selling tobacco, or tobacco related products in any form, including but not limited to cigarettes, cigars, loose tobacco, rolling papers, chewing tobacco, snuff, matches and lighters, and vapor products which includes noncombustible products that may or may not contain nicotine, that employ a mechanical heating element, battery, electronic circuit or other mechanism, regardless of shape or size, that can be used to produce a vapor in a solution or other form. A vapor product also includes any vapor cartridge or other container with or without nicotine or other form that is intended to be used with an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe or similar product or device and any vapor cartridge or other container of a solution, that may or may not contain nicotine, that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo or electronic device. Vapor products not included are any products regulated by the United States Food and Drug Administration under Chapter V of the Food, Drug and Cosmetic Act.

43. Use or possession of missing or stolen property if property is reasonably suspected to have been taken from a student, a school employee, or the school

44. Using racial, religious, ethnic, sexual, gender or disability-related epithets

45. Use of the school's resources (i.e., computers, electronic mail, internet, and similar resources) in a manner prohibited by policies, in any manner not authorized by school officials, or in violation of law

46. Vandalism

47. Violation of board of education policies, rules or regulations or violation of

school rules and regulations including, but not limited to, disrespect, lingering in restrooms, running in halls, bringing unauthorized items to school, inappropriate or unauthorized use of cellular phones or other electronic media, name calling, destroying or defacing school property

48. Vulgarity

49. Willful damage to school property

50. Willful disobedience of a directive of any school official

In addition, conduct occurring outside of the normal school day or off school property that has a direct and immediate negative effect on the discipline or educational process or effectiveness of the school, will also result in disciplinary action, which may include in- school placement options or out-of-school suspension. This includes but is not limited to electronic communication, whether or not such communication originated at school or with school equipment, if the communication is specifically directed at students or school personnel and concerns harassment, intimidation or bullying at school.

School Safety and Bullying Prevention Act (OKLA. STAT. tit. 70, § 24-100.2)

The Oklahoma Legislature established the *School Safety and Bullying Prevention Act* with the express intent of prohibiting bullying in all schools. In addition to the prohibition listed in the student discipline code, above, the board has adopted a separate policy prohibiting bullying and outlining the district's plan to address it.

Sample Disciplinary Options

- *Instructor or Administrator Intervention*

  May include, but is not limited to: warning conference with student, parent conference, referral to counselor, behavioral contract, restriction of privileges, requirement of corrective action by student, changing student's seat or class assignment, involvement of local authorities or agencies, or other appropriate action as required or indicated by the circumstances.

- *Detention or In-School Intervention*

  Detention is a correctional measure used when it is deemed appropriate. Students are to report to the appropriate teacher/principal at the specified time with class work to be studied. Detention may be assigned on a week-day or on a Saturday, as deemed appropriate.

- *Alternative In-School Placement*

  Alternative in-school placement is an optional correctional measure that may be used by the school when deemed appropriate. It involves assignment to a school site, designated by the school, for a prescribed course of education as determined by school representatives. Any such placement will be made in accordance with applicable special education procedural safeguards.

- *Alternative Out-of-School Placement*

  Alternative out-of-school placement is an optional correctional measure specifically authorized in cases when a student has made electronic communications intended to terrify, intimidate, harass, or threaten injury or harm to faculty or students. Any such placement will be made in accordance with applicable special education procedural safeguards.

- *School Service*

  School service may be required of students when an administrator believes that it would allow the student to understand the logical consequences of his/her conduct. Examples include, but are not limited to, cleaning after vandalism or littering, helping a teacher after disrupting a class, etc. School service will not be utilized to augment the district's workforce, in ways which are likely to endanger a student, or in a manner which is designed to unduly embarrass a student.

- *Out of School Student Suspension*

  Students may be suspended out of school pursuant to the district's policy regarding student suspension.

Corporal punishment will not be utilized at any school site.

<u>Student Privileges While Under Suspension</u>

Participation in the extracurricular activities of the school is a privilege and not a right. Accordingly, when a student's behavior results in a determination by the principal to impose disciplinary or other correctional measures against a student, the student will not be permitted to participate in any extracurricular activities offered by the school during the term of the discipline unless, in the sole judgment of the principal, such participation is appropriate given the nature of the offense committed by the student.

"Extracurricular activities" include, but are not limited to, all school sponsored teams, clubs, organizations, ceremonies, student government, band, athletics and all other school sponsored activities and organizations.

STUDENT SUSPENSION
(Out-of-school)

This policy applies only to out-of-school suspensions and, unless otherwise noted, all references to "suspension" in this policy mean out-of-school suspension. References to "parent" in this policy means a student's parent(s) or legal guardian(s). References to "principal" means the school principal or staff member to whom the principal has delegated the responsibility for student discipline.

Behavior or Conduct that May Result in Suspension:

Students may be suspended for:

1. violation of a school regulation (which includes but is not limited to any policy, rule, regulation, directive, etc.);

2. possession of an intoxicating beverage, low-point beer, as defined by OKLA. STAT. tit. 37, § 163.2, or missing or stolen property if the property is reasonably suspected to have been taken from a student, a school employee, or the school during school activities;

3. possession of a dangerous weapon or a controlled dangerous substance while on or within two thousand (2,000) feet of public-school property, or at a school event, as defined in the Uniform Controlled Dangerous Substances Act. Possession of a firearm shall result in suspension as provided in the district's policy related to firearms;

Students who are suspended under categories 1 or 2 will be provided with an education plan as outlined below. No education plan will be required for students who are suspended under Category 3.

Violent Acts Toward School Personnel

Any student in grades 6 through 12 found to have assaulted, attempted to cause physical bodily injury, or acted in a manner that could reasonably cause bodily injury to a school employee or person volunteering for the school shall be suspended for the remainder of the current semester and the next consecutive semester. For good cause and considering the totality of the circumstances, the district's superintendent or designee may modify the term of the suspension. Final action as to any such suspension, including its term, remains with the board of education or designated hearing officer, pursuant to a timely appeal.

Students suspended for a violent offense directed toward a classroom teacher shall not be allowed to return to the teacher's classroom without the teacher's prior approval. Whether an offense is considered a violent offense, requiring an affected teacher's approval as a condition of return to a particular classroom, shall be based on applicable provisions of the

Oklahoma school law regarding student suspension and applicable Oklahoma criminal law distinguishing between violent and nonviolent offenses.

District's Obligations Prior to Suspension

Before the district recommends suspension, other disciplinary options will be considered, including but not limited to: placement in an alternative school setting, reassignment to another classroom, and detention. The district will provide additional procedural safeguards as required by law for students identified as having disabilities under the Individuals with Disabilities Education Act or Section 504 of the Rehabilitation Act/Title II of the Americans with Disabilities Act.

Pre-Suspension Conference

When a student engages in behavior or conduct that may result in suspension the principal shall conduct an informal conference with the student.

At the conference the principal shall read the regulation that the student is charged with having violated and shall discuss the student's conduct. The student shall be asked whether he/she understands the regulation and be given a full opportunity to explain and discuss his/her conduct.

If the principal concludes that suspension is appropriate, the student shall be advised that he/she is being suspended and the length of the suspension. The principal shall immediately notify the parent by phone and in writing that the student is being suspended and that other disciplinary options were considered and rejected. The written notice will state which alternative disciplinary options were considered and why they were rejected. Elementary and middle school students shall not be dismissed before the end of the school day without advance notice to the parent.

A student may be suspended without a pre-suspension conference only in situations when the principal reasonably believes that the student's continued presence in the building will constitute an immediate danger to the health or safety of students, school employees, school property, or would be a substantial disruption of the educational process. In such cases, a conference with the student and parent will be scheduled as soon as possible after the student has been removed from the building.

Conferences with Parents

The principal will seek to hold a conference with the parent as soon as possible after the suspension has been imposed. The parent should be advised of his/her right to a conference with the principal at the time he/she is verbally notified that a suspension has been imposed. The conference will be held during the regular school hours, Monday through Friday, with consideration given whenever possible to the hours of working parents.

At the conference, the principal will read the regulation the student is charged with having violated and will briefly outline the student's conduct. The principal will also explain the reason for rejecting other disciplinary options. The parent should be asked by the principal if he/she understands the regulation and the charges against the student.

At the conclusion of the conference the principal shall state whether he/she will terminate or modify the suspension. In all cases the parent will be advised of the right to have the suspension reviewed by the superintendent, board of education, a hearing officer appointed by the board, or the suspension committee as provided by this policy. If the parent is in agreement with the principal's decision, he/she will be requested to sign a waiver of review.

Individualized Plans

Suspensions in excess of five (5) days shall include an Individualized Plan ("Plan") that shall describe either a home-based school work assignment setting or other appropriate work assignment setting. The Plan shall be prepared by the principal with the assistance of other school employees.

The Plan shall provide for the core units in which the student is enrolled. Core units shall consist of the minimum English, Mathematics, Science, Social Studies and Art units required by the Oklahoma State Department of Education for grade completion in grades kindergarten through eight and for high school graduation in grades nine through twelve.

A copy of the Plan shall be provided to the student and parent. The parent shall be responsible for providing a supervised, structured environment monitoring the student's educational progress until the student is readmitted into school. The Plan shall set out the procedure for education and shall also address academic credit for work satisfactorily completed.

Records

The principal will keep written records of each suspension conference. The records will contain the date of the conference, names of participants, time and duration of the conference, and the basis for rejecting alternative disciplinary options. The principal shall also maintain records related to the Plan and the student and/or parent's compliance with the Plan.

Suspension Terms

All suspensions will have a definite start and end date. The term of a suspension may be reduced if a student performs a specified remedial act if those conditions are agreed to at the time of the suspension. Suspension lengths will be as consistent as possible between students considering the nature of the conduct and the previous disciplinary history of the student.

Long-term suspensions are those suspensions in excess of ten (10) school days. Suspensions will not extend beyond the current school semester and succeeding semester, except in the case of possession of a firearm, in which case a suspension shall be for a period of not less than one (1) calendar year. Suspensions involving firearms are governed by the school district's Gun-Free Schools Student Suspension policy.

Short-term suspensions are those suspensions of ten (10) or fewer school days.

Long-Term Suspension Appeals

A parent/student may appeal the suspension to the superintendent and board of education or a hearing officer appointed by the board. The principal shall inform the parent/student of the right to appeal the suspension and the method for appealing. At the parent/student's option the appeal may be directly to the board or the board's appointed hearing officer.

A written appeal must be received by the superintendent within five (5) calendar days after the parent/student receives the principal's decision. If the superintendent does not receive a written appeal within five (5) calendar days of the principal's decision, the principal's suspension decision is final.

Appeals to the Superintendent or Designee ("Superintendent")

If the superintendent receives a timely written appeal request, the superintendent will hold a conference with the parent or guardian as soon as possible. The conference will be held during regular school hours, Monday through Friday, with consideration given to the hours of working parents whenever possible.

At the conference, the superintendent will read the regulation the student is charged with having violated and will briefly outline the student's conduct. The parent will be asked if he/she understands the regulation and the charges against the student. The student/parent will be given an opportunity to provide his/her version of events.

At the conclusion of the conference the superintendent will state whether he/she shall uphold, terminate or modify the suspension. In all cases the parent shall be advised of the right to have the suspension reviewed by the board of education or a board-appointed hearing officer. If the parent is in agreement with the superintendent's decision, he/she shall be requested to sign a waiver of review by the board.

Appeals to the Board of Education or Designated Hearing Officer

An appeal must be presented by letter to the superintendent within five (5) calendar days after the parent/student receives the superintendent's decision. If the superintendent does not receive a written appeal within five (5) calendar days of the superintendent's decision, the superintendent's suspension decision is final.

If the board receives a timely written appeal request, the board or an appointed hearing officer will hear the appeal as soon as possible. This decision is final and nonappealable.

The parent/student will be notified in writing of the date, time and place of the hearing and will have the right to choose an "open" or "closed" hearing. Reasonable efforts will be made to accommodate the work schedule of parents. The following procedures will be followed:

1. The board president or the appointed hearing officer should:

    a. Announce that the next agenda item is a suspension review hearing.

b. Ask whether the parent/student wants the hearing to be open to the public or in executive session. The offer of an open hearing and the response is to be made a part of the minutes of the meeting. If the parent/student requests a closed hearing, a motion to go into executive session per their request should be made and voted on.

2. The board president or hearing officer should advise the parent/student:

   a. That they are entitled to legal counsel, if they desire it.

   b. That the administration will present its witnesses first and that after each witness the parent or their legal counsel will be given an opportunity to cross-examine.

   c. That the parent/student will be given an opportunity to call any relevant witnesses and present any relevant evidence, subject to cross-examination by the administration's legal counsel.

   d. That the board or its hearing officer will consider the evidence and documents and reach a decision that will be recorded by vote in open session.

   e. That the parent/student may ask any questions about the procedure.

3. Administration may call witnesses and present documents subject to cross-examination.

4. Parent/student may call any witnesses and present documents subject to cross-examination.

5. After each witness is presented board members or the hearing officer may ask the witness questions.

6. Parent/student's closing statement.

7. Administration's closing statement.

8. Deliberate in private. (If the hearing is not in executive session, the board or its hearing officer may deliberate in executive session only with permission of the parent/student.)

9. Return to open session and vote. After adopting a motion making certain findings of fact the board must make a motion to: (1) affirm the suspension; (2) modify the suspension (increase or decrease severity of the suspension); or (3) revoke the suspension. If the hearing is before a hearing officer, no motions will be required as a part of the

hearing process; otherwise, the hearing officer will have the same obligations as the board when rendering a decision.

Attendance at School Pending Appeal Hearing

Pending an appeal of the student suspension, the student will have the right to attend school under such "in-house" restrictions as the principal deems proper, except that at the discretion of the principal, the student may be prohibited from attending school pending any appeal hearing if in the judgment of the principal the student's continued presence in the building will constitute an immediate danger to the health or safety of students, school employees, school property, or would be a substantial disruption of the educational process.

Short-Term Suspension Appeals

A parent or student may appeal the suspension decision to a suspension review committee established by the superintendent. The principal shall inform the parent/student of the right to appeal the suspension and the method for appealing.

An appeal must be presented by letter to the principal within five (5) calendar days after the parent/student receives the principal's decision. If the principal does not receive a written appeal within five (5) calendar days of the decision, the principal's suspension decision is final.

Upon receipt of the request, the principal shall confirm that the student's suspension falls within the category of suspensions to which an appeal to the committee is authorized. If the principal determines that the suspension is a long-term suspension, or the original short- term suspension is extended beyond ten (10) school days prior to the hearing, the procedures applicable to long-term suspensions must be followed and the student must be given the opportunity to appeal any adverse decision to the board of education.

Hearing the Appeal

1. The superintendent shall appoint a review committee consisting of not less than three certified administrators and/or teachers, and shall designate a chairperson for the committee. No administrator or teacher is eligible to serve on the committee who was a witness to the student's conduct, nor is any teacher eligible to serve who has the student in his/her class for the current school term.

2. The superintendent shall schedule the committee hearing as soon as possible during regular school hours, Monday through Friday. Reasonable consideration shall be given to accommodate the work schedules of the parent whenever possible. The parent/student will be notified in writing of the date, time and place of the hearing. The principal shall attend the hearing. Either party choosing to have legal counsel at the hearing shall give the other party twenty-four (24) hours advance notice. The failure to give such notice will preclude the party's right to have counsel attend the hearing.

3. The committee will conduct a full investigation of the student's suspension in an informal manner. The principal will briefly outline the student's conduct,

read the regulation that the student's conduct violated, and present any evidence and witnesses that support the suspension decision. The parent/student will be asked by the committee if they understand the regulation and charges against the student. The parent/student will then briefly explain the student's conduct, and present any evidence and witnesses that support the student's position.

4. At the conclusion of the presentation of the evidence, the committee shall retire to render a decision by a majority vote as to the guilt or innocence of the student. The committee shall also determine the reasonableness of the term of the suspension. The committee's decision shall be confirmed in writing and a copy will be mailed to the parent, the principal and the superintendent.

5. The decision of the committee shall be final and nonappealable.

Student Privileges While Under Suspension

Participation in school extracurricular activities is a privilege and not a right. Accordingly, students who are suspended are immediately ineligible to participate in extracurricular activities, notwithstanding the filing of an appeal. "Extracurricular activities" include, but are not limited to, all school sponsored teams, clubs, organizations, ceremonies, student government, band, athletics and all other school sponsored activities and organizations.

Reference: OKLA. STAT. tit. 70 § 24-101.3

GUN-FREE SCHOOLS STUDENT SUSPENSION

Any student who is determined to have:

- brought a weapon to a school under the jurisdiction of the district; or
- possessed a weapon within two thousand (2,000) feet of public-school property; or
- possessed a weapon at a school event

shall be suspended out of school for a period of not less than one calendar year. This policy does not apply to students who are members of the JROTC and who possess or bring an inoperable weapon to school for participation in a school program, provided the student obtained prior permission from the principal, the weapon remains inoperable while at school and the weapon is used consistent with the permission granted.

Any out-of-school suspension imposed under this policy may be modified for any student on a case-by-case basis by the chief administrative officer of the district.

For the purposes of this policy, the following definitions shall control:

- The term "weapon" means a firearm as such term is defined in Section 921 of Title 18 of the United States Code.
- The term "chief administrative officer" means the superintendent or the board of education.
- The term "determined to have brought a weapon to a school under the jurisdiction of the district" means any student being in possession or control of a weapon on property owned, leased or rented by the district, including, but not limited to, school buildings, parking lots and motor vehicles and any student who is in possession or control of a weapon at any district sponsored function regardless of whether such function is conducted on district property.

Enforcement of this policy shall be consistent with state and federal laws dealing with discipline of students with disabilities.

Students who violate this policy will be referred to the appropriate criminal justice or juvenile delinquency system. Any firearm seized from a student by any school employee shall immediately be delivered to a law enforcement authority for disposition pursuant to applicable law.

Any out-of-school suspension initiated pursuant to this policy shall be subject to the procedural safeguards set forth in the district's policy for the out-of-school suspension of

students.

Consistent with Oklahoma law, for an out-of-school suspension under this policy, no education plan shall be implemented during the term of the suspension. This policy does not apply to student suspensions for non-weapon violations.

Reference: OKLA. STAT. tit. 70 § 24-101.3

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: August 14, 2023

STUDENT BULLYING

Statement of Legislative Mandate and Purpose

This policy is a result of the legislative mandate and public policy embodied in the *School Safety and Bullying Prevention Act*, 70 OKLA. STAT. § 24-100.2 et seq. ("Act"). The district intends to comply with the mandates of the Act and expects students to refrain from bullying. Bullying is expressly forbidden and students who bully are subject to disciplinary consequences as outlined in the district's policy on student behavior. Bullies may also be provided with assistance to end their unacceptable behavior, and targets of bullies may be provided with assistance to overcome the negative effects of bullying.

Definition of Terms

A. Statutory definition of terms:

"Bully" means any pattern of harassment, intimidation, threatening behavior, physical acts, verbal or electronic communication directed toward a student or group of students that results in or is reasonably perceived as being done with the intent to cause negative educational or physical results for the targeted individual or group and is communicated in such a way as to disrupt or interfere with the school's educational mission or the education of any student.

"Threatening behavior" means any pattern of behavior or isolated action, whether or not it is directed at another person, that a reasonable person would believe indicates potential for future harm to students, school personnel, or school property.

"Electronic communication" means the communication of any written, verbal, pictorial information or video content by means of an electronic device, including, but not limited to, a telephone, a mobile or cellular telephone or other wireless telecommunication device, or a computer.

Note: Bullying by electronic communication is prohibited whether or not such communication originated at school, or with school equipment, if the communication is specifically directed at students or school personnel and concerns bullying at school.

"At school" means on school grounds, in school vehicles, at school-sponsored activities, or at school-sanctioned events.

B. The "Reasonable Person" Standard

In determining what a "reasonable person" should recognize as bullying, staff will consider the point of view of the intended target, including any characteristics

unique to the intended target. Staff may also consider the discipline history and physical characteristics of the alleged bully.

C. Types of Bullying

"Physical Bullying" includes harm or threatened harm to another's body or property, including but not limited to threats, tripping, hitting, pushing, pinching, pulling hair, kicking, biting, starting fights, daring others to fight, stealing or destroying property, extortion, assaults with a weapon, other violent acts, and homicide.

"Emotional Bullying" includes the intentional infliction of harm to another's self-esteem, including but not limited to insulting or profane remarks or gestures, or harassing and frightening statements.

"Social Bullying" includes harm to another's group acceptance, including but not limited to gossiping; spreading negative rumors to cause a targeted person to be socially excluded, ridiculed, or otherwise lose status; acts designed to publicly embarrass a targeted person, damage the target's current relationships, or deprive the target of self-confidence or the respect of peers.

"Sexual Bullying" includes harm of a sexual nature, including but not limited to making unwelcome sexual comments or gestures to or about the targeted person; creating or distributing vulgar, profane or lewd words or images about the target; committing a sexual act at school, including touching private parts of the target's body; engaging in off-campus dating violence that adversely affects the target's education opportunities; making threatening sexual statements directed at or about the target; or gossiping about the target's sexuality or sex life. Such conduct may also constitute sexual harassment which is prohibited by the district.

<u>Understanding and Preventing Bullying</u>

A. Student and Staff Education and Training

A full copy of this policy will be posted on the district's website and included in all district handbooks. Parents, guardians, community members, and volunteers will be notified of the availability of this policy through the district's annual written notice of the availability of the district's anti-bullying policy. Written notice of the policy will also be posted at various places in all district school sites.

Students and staff will be periodically reminded throughout the year of the availability of this policy, the district's commitment to preventing bullying, and help available for those affected by bullying. Anti-bullying programs will be incorporated into the district's other violence prevention efforts.

All staff will receive training regarding preventing, identifying, reporting, and managing bullying. The district's bullying coordinator and individuals designated as school site investigators will receive additional training regarding appropriate consequences and remedial action for bullies, helping targets of bullies, and the district's strategy for counseling and referral for those affected by bullying. The training shall be completed the first year an administrator or district employee is employed by the district, and then once every fifth academic year.

Students will receive annual education regarding behavioral expectations, understanding bullying and its negative effects, disciplinary consequences for infractions, reporting methods, and consequences for those who knowingly make false reports. Parents and guardians may participate in a parent education component.

B. Safe School Committees

Each Safe School Committee has the responsibility of studying and making recommendations regarding unsafe conditions, strategies for students to avoid harm at school, student victimization, crime prevention, school violence, and other issues which interfere with and adversely affect school safety.

With respect to student bullying, each Committee shall assist the board in promoting a positive school climate. The Committee will study the district's policy and currently accepted bullying prevention programs (available on the state department website) to make recommendations regarding bullying. These recommendations must be submitted to the principal and cover: (i) needed staff development, including how to recognize and avoid bullying; (ii) increasing student and community involvement in addressing bullying, (iii) improving individual student- staff communication, (iv) implementing problem solving teams which include counselors and/or school psychologists, and (v) utilizing behavioral health resources.

Student Reporting

Students are encouraged to inform school personnel if they are the target of or a witness to bullying. To make a report, students should notify a teacher, counselor, or principal. The employee will give the student an official report form, and will help the student complete the form, if needed.

Students may make an anonymous report of bullying, and such report will be investigated as thoroughly as possible. However, it is often difficult to fully investigate claims which are made anonymously and disciplinary action cannot be taken against a bully solely on the basis of an anonymous report.

Staff Reporting

Staff members will encourage students to report bullying. All employees are required to report acts of bullying to the school principal on an official report form. Any staff member who witnesses, hears about, or suspects bullying is required to submit a report.

Bullying Investigators

Each school site will have a designated individual and an alternate to investigate bullying reports. These individuals will be identified in the site's student and staff handbooks, on the district's website, and in the bullying prevention education provided annually to students and staff. The district's anti-bullying program is coordinated at the district level by its bullying coordinator, the Assistant Superintendent.

Investigating Bullying Reports

For any alleged incidents of bullying reported to school officials, the designated school official will investigate the alleged incident(s) and determine (i) whether bullying occurred, (ii) the severity of the incident(s), (iii) the potential for future violence and (iv) the reason for the actual or perceived bullying.

In conducting an investigation, the designated official shall interview relevant students and staff and review any documentation of the alleged incident(s). School officials may also work with outside professionals, such as local law enforcement, as deemed appropriate by the investigating official. In the event the investigator believes a criminal act may have been committed or there is a likelihood of violence, the investigator will immediately call local law enforcement and the superintendent.

At the conclusion of the investigation, the designated employee will document the steps taken to review the matter, the conclusions reached and any additional action taken, if applicable. Further, the investigator will notify the district's bullying coordinator that an investigation has occurred and the results of the investigation.

Upon completion of an investigation, the school may recommend that available community mental health care or substance abuse options be provided to a student, if appropriate. The school may provide a student with information about the types of support services available to the student bully, target, and any other students affected by the prohibited behavior. These resources will be provided to any individual who requests such assistance or will be provided if a school official believes the resource might be of assistance to the student/family. The district is not responsible for paying for these services. No school employee is expected to evaluate the appropriateness or the quality of the resource provided, nor is any employee required to provide an exhaustive list of resources available. All school employees will act in good faith.

The school may request the disclosure of information concerning students who have received substance abuse or mental health care (pursuant to the previous paragraph) if that information indicates an explicit threat to the safety of students or school personnel, provided the disclosure of the information does not violate the requirements and provisions of the Family Educational Rights and Privacy Act of 1974, the Health Insurance Portability and Accountability Act of 1996, OKLA. STAT. tit. 12 § 1376, OKLA. STAT. tit. 59 §1376 of the Oklahoma Statutes, or any other state or federal laws regarding the disclosure of confidential information. The school may request the disclosure of information when it is believed that the student may have posed a danger to him/herself and having such information will allow school officials to determine if it is safe for the student to return to the regular classroom or if alternative education arrangements are needed.

Parental Notification

The assigned investigator will notify the parents of a target within one (1) school day that a bullying report has been received. Within one (1) school day of the conclusion of the investigation, the investigator will provide the parents of a target with the results of the investigation and any community resources deemed appropriate to the situation.

If the report of bullying is substantiated, within one (1) school day of the conclusion of the investigation, the investigator will contact the parents of the bully to discuss disciplinary

action and any community resources deemed appropriate to the situation.

The timelines in this parental notification section may be reasonably extended if individual circumstances warrant such an extension.

Parental Responsibilities

All parents/guardians will be informed in writing of the district's program to stop bullying and will be given a copy of this policy upon request. An administrative response to a reported act of bullying may involve certain actions to be taken by parents. Parents will be informed of the program and the means for students to report bullying acts toward them or other students. They will also be told that to help prevent bullying at school they should encourage their children to:

- Report bullying when it occurs;
- Take advantage of opportunities to talk to their children about bullying;
- Inform the school immediately if they think their child is being bullied or is bullying other students;
- Watch for symptoms that their child may be a target of bullying and report those symptoms; and
- Cooperate fully with school personnel in identifying and resolving incidents.

Student Transfers

Students who are victims of bullying, and who report the incident(s) to school administrators, may choose to transfer to another school district. Any application for transfer must be made in accordance with the receiving school district's transfer policy.

Monitoring and Compliance

In order to assist the State Department of Education with compliance efforts pursuant to the *School Safety and Bullying Prevention Act*, 70 OKLA. STAT. § 24-100.2 et seq., the district will identify a Bullying Coordinator who will serve as the district contact responsible for providing information to the State Board of Education. The Bullying Coordinator shall maintain updated contact information on file with the State Department of Education and the school district will notify the State Department of Education within fifteen (15) days of the appointment of a new Bullying Coordinator.

A copy of this policy will be submitted to the State Department of Education by December 10th of each school year as part of the school district's Annual Performance Report.

Reference: OKLA. STAT. tit. 70 § 24-100.2; OKLA. STAT. tit. 70, § 24-100.4

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021

HAZING

Hazing constitutes unethical and unacceptable conduct that will not be tolerated in Skiatook Public Schools. To that end the district adopts the following policy prohibiting hazing.

"Hazing" means any activity which recklessly or intentionally endangers the physical or mental health or safety of a student, required as a condition of membership in an organization, regardless of willing participation, including but not limited to physical brutality such as whipping, beating, branding, forced calisthenics, exposure to the elements, forced consumption of food, alcohol, drugs, or other substances, and activities which would induce extreme mental stress such as prolonged sleep deprivation, prolonged isolation, and conduct which could cause extreme embarrassment or humiliation.

Endangering the physical health shall include, but not be limited to, any brutality of a physical nature, such as whipping, beating, branding, forced calisthenics, exposure to the elements, forced consumption of any food, alcoholic beverage, low-point beer, drug, controlled dangerous substance, or other substance, or any other forced physical activity which could adversely affect the physical health or safety of the individual.

Endangering the mental health shall include, but not be limited to, any activity except those authorized by law, which would subject the individual to extreme mental stress, such as prolonged sleep deprivation, forced prolonged exclusion from social contact, forced conduct which could adversely affect the mental health or dignity of the individual.

No organization having student members which is sponsored by the district or which is permitted to hold meetings or other events on district property (a "Student Organization") and no student member of a Student Organization shall engage or participate in or directly or indirectly condition membership on participation in or submission to a hazing activity.

Students violating these prohibitions shall not be permitted to participate in any extra-curricular activity sponsored by the district for a period determined by the administration based on the totality of the circumstances, shall be subject to disciplinary measures which may include suspension, and shall, when appropriate, be referred to local law enforcement authorities for prosecution.

Student Organizations which violate these prohibitions shall forfeit all rights, privileges, and recognition from the district for a minimum of one year, and shall be referred to local law enforcement authorities for prosecution.

Hazing will be dealt with as outlined in the Code of Student Conduct. School employees who are linked to hazing shall be subject to discipline - including dismissal or non-renewal.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021

STUDENT POSSESSION OF DANGEROUS WEAPONS

In order to provide a safe environment for the students and staff of the district, the board of education adopts this policy prohibiting the possession and/or use of dangerous weapons, replicas or facsimiles of dangerous weapons and items or instrumentalities which are used to threaten harm or are used to harm any person.

Dangerous weapons, including but not limited to firearms, are a threat to the safety of the students and staff of the district. In addition, possession of dangerous weapons, or replicas or facsimiles of dangerous weapons, disrupts the educational process and interferes with the normal operation of the district.

For the foregoing reasons and except as specifically provided in paragraph 10 below, possession by any student of a dangerous weapon, as that term is defined in this policy, or a replica or facsimile of a dangerous weapon, while on school property, at a school-sponsored activity, or on a school bus or vehicle, is prohibited. Further, use of any item or instrumentality by a student to threaten harm to any person or which is used to harm any person, while on school property, at a school-sponsored activity, or on a school bus or vehicle, is prohibited.

For purposes of this policy, "possession of a dangerous weapon" includes, **BUT IS NOT LIMITED TO,** any person having a dangerous weapon: (1) on his or her person; (2) in his or her locker; (3) in his or her vehicle; (4) held by another person for his or her benefit; or (5) at any place on school property, a school bus or vehicle, or at a school activity.

A dangerous weapon includes, **BUT IS NOT LIMITED TO,** a pistol, revolver, rifle, shotgun, air gun or spring gun, B-B gun, stun gun, hand grenades, fireworks, slingshot, bludgeon, blackjack, brass knuckles or artificial knuckles of any kind, nun-chucks, dagger, bowie knife, dirk knife, butterfly knife, any knife, regardless of the length or sharpness of the blade, any knife the blade of which can be opened by a flick of a button or pressure on the handle, any pocketknife, regardless of the length or sharpness of the blade, any pen knife, "credit card" knife, razor, dart, ice pick, explosive smoke bomb, incendiary device, sword cane, hand chains, firearm shells or bullets, garrottes, choking devices, mace, pepper spray, and any item whose principal purpose is for use as a weapon, whether offensive or defensive, and any replica or facsimiles of any of the foregoing items, or any item or instrumentality which is used to threaten harm or is used to harm any person or any chemical, material or substance which can cause an irritation to or reacts with human tissue, or any chemical, material or substance used, given, applied to or administered to another person without that person's consent. The foregoing list of "dangerous weapons" is descriptive and by way of example only and is not to be considered an exclusive or limiting list of dangerous weapons. It will not be a defense to any disciplinary action under this policy that the student possessing the dangerous weapon did not know that it is dangerous weapon, but such claim of a lack of knowledge may be considered in mitigation of any disciplinary penalty.

Any student in possession of a dangerous weapon, or replica or facsimile of a dangerous weapon, in violation of this policy or who uses any item or instrumentality to threaten harm to any person or is used to harm any person may be placed under emergency suspension from school, pending an investigation of the incident by the appropriate school or legal authorities. Students who violate this policy may be suspended from school, barred from school property and all school activities for any period of time up to the maximum period authorized by law. Additionally, appropriate school staff members may seek to file criminal charges against the student.

If a teacher or other school employee has a reasonable suspicion to believe that a student is in possession of a dangerous weapon, or a replica or facsimile of a dangerous weapon, the teacher or employee shall immediately investigate the matter and shall confiscate any such weapon found if this can be accomplished without placing any students or staff in jeopardy, and shall immediately notify the superintendent or the superintendent's designee. If the teacher or employee does not believe that the weapon can be confiscated safely, the teacher or employee shall immediately notify the superintendent or the superintendent's designee of the situation.

If the superintendent or his/her designee learns that a student is believed to be in possession of a dangerous weapon or replica or facsimile thereof, the superintendent or designee shall observe the following procedure:

1. Immediately investigate the matter and contact the police or campus security, if appropriate.

2. If not already confiscated by an employee of the district and if it can be accomplished without risk of injury, the superintendent or designee should take possession of the dangerous weapon or replica or facsimile.

3. Notify the superintendent or designee.

4. Notify the student's parents.

5. Cooperate fully with the police.

6. Transfer confiscated weapon to the police department, if feasible.

A student who has been suspended from another school district because of the possession of a dangerous weapon, or replica or facsimile of a dangerous weapon, shall not be accepted as a transfer student into the district.

An exception to this policy may be granted for students participating in an authorized curricular or extracurricular activity or team involving the use or demonstration of a dangerous weapon, or replica or facsimile of a dangerous weapon. For this exception, prior written approval by the superintendent is required. Students who participate in JROTC may also be granted an exception to bring an inoperable weapon onto campus for the limited purpose of participating in a school program. The principal must approve this exception in advance, the weapon must remain inoperable at all times while on campus, and the weapon must not be used in a manner which is inconsistent with the permission granted.

A student's inadvertent or unintentional possession of a dangerous weapon or replica or

facsimile thereof on school property, a school bus or vehicle, or at a school activity is no defense or excuse to compliance to this policy, but may be considered in determining the length or severity of any punishment for violation of this policy.

Notwithstanding any of the foregoing provisions, rights of due process for all students and rights of disabled students must be observed in accordance with applicable law and school board policies.

STUDENTS, DRUGS AND ALCOHOL

Illegal and Illicit Drugs and Alcohol

1. Use of illicit drugs and unlawful possession and use of alcohol is wrong and harmful.

2. Students are prohibited from using, being under the influence of, possessing, furnishing, distributing, selling, conspiring to sell or possess or being in the chain of sale or distribution of tobacco, alcoholic beverages, non-intoxicating alcoholic beverages (as defined by Oklahoma law, i.e., 3.2 beer), illegal or illicit drugs, or other mood-altering substances at school, while on school vehicles, or at any school-sponsored event.

3. "Illicit drugs" includes steroids and prescription and over-the-counter medications being used for an abusive purpose, i.e., when they are not used in compliance with the prescription or directions for use and are not being used to treat a current health condition of the student.

4. ‘‘Mood-altering substances’’ include, but are not limited to, paint, glue, aerosol sprays, salts, incense, and other substances which may be used as an intoxicating substance.

5. Violation of this rule will result in imposition of disciplinary measures, which may include suspension for the remainder of the current semester and the following semester.

6. Student violation of this rule which also constitutes illegal conduct will be reported to law enforcement authorities.

Necessary Medications

1. Students may not retain possession of and self-administer any medication at school for any reason.

2. Students who have a legitimate health need for over-the-counter or prescription medication at school shall deliver such medications to the school nurse or principal with a parental authorization, in compliance with Oklahoma law and school policy and procedures regarding administering medicine to students.

3. Violations of this rule will be reported to the student's parents by the principal, and may result in discipline which can include suspension.

Distribution of Information

1. Information for students and their parents about drug and alcohol counseling and rehabilitation and reentry programs in this geographic area is available from the principal or counselor at each student's school.

2. Copies of these Rules shall be provided to all students and their parents at the beginning of each school year.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: August 14, 2023

STUDENT SEARCH AND SEIZURE

The superintendent or his/her designee is authorized to detain and search any student and any property in the student's possession while on school premises, at school activities, or in transit under authority of the school, for any item possession of which by the student is illegal or prohibited by school rules, or for property believed to have been stolen from another student, an employee, or the school. The search shall be conducted according to the following guidelines:

Reasonableness

1. The decision to search must be based upon a reasonable suspicion that

   A. A violation of the law or school rules has occurred or is occurring;

   B. The student to be searched has committed the violation; and

   C. Particular evidence of the violation will be discovered in the search.

2. In deciding whether a suspicion is reasonable, all the circumstances surrounding the case should be considered, including:

   A. The student's age, history, and record in school;

   B. The prevalence and seriousness of the suspected violation;

   C. The school officials' prior experience in detecting the problem or recognizing suspicious behavior;

   D. The need to make a search without delay and further investigation;

   E. The specificity and source of the information used as justification for the search; and

   F. The particular teacher or school official's experience with the student.

Scope

1. The scope or extent of the search shall be reasonably related to the kind of objects being searched for, and not excessively intrusive in light of the student's age and sex and the nature of the suspected violation.

2. A search commenced to discover a particular kind of item may be expanded or continued for additional items if circumstances warrant.

3. No student's clothing, except cold weather outerwear, shoes, and hand and head coverings, except religious head coverings, shall be removed prior to or during the conduct of any warrantless search.

Discovered Items

1. Illegal items or other possessions or substances reasonably determined to be a threat to the safety or security of others may be seized by school authorities. These items will immediately be turned over to law enforcement officials for disposition as they see fit.

2. Items which are used to disrupt or interfere with the educational process may be temporarily removed from student possession.

3. The Superintendent may designate school personnel to transport any dangerous weapons, controlled dangerous substances, alcoholic beverages, or missing or stolen property that might be in a student's possession from a school site to a centralized location within the school district or to local law enforcement offices for lawful disposal. While in transport, the designated school personnel shall carry their school identification and a letter from the superintendent confirming their authority to transport the items for disposal. All items transported for disposal shall be transported in a locked container.

Refusal to Submit to Search

A student who refuses to peaceably submit to a search based on reasonable suspicion or who refuses to turn over items discovered as a result of a search may be suspended for such refusals.

Reports

The person conducting the search shall prepare a report to be maintained by the superintendent including the date, time, place, names of witnesses, purpose, basis, and result of the search.

Reference: OKLA. STAT. tit. 70, § 24-102

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: August 14, 2023

LOCKER SEARCH AND SEIZURE

In order to maintain discipline and to ensure the proper functioning of the educational process, school administrators must have access at all times to all school property, including lockers, desks, etc. assigned to students. The administration will maintain a confidential file of all lockers and their combinations and will retain master keys to all lockers, cabinets, etc., as applicable. Thus, although students have privacy rights in their locker contents as against other students, they do not have privacy rights in their locker contents as against school administrators. No school property will be used to store objects or materials that violate school regulations or state and local ordinances. The school maintains the right to ensure that lockers and desks are properly cleaned and that they do not contain items which should not be kept on school property. Lockers will be opened periodically for cleaning purposes and to locate overdue library and class materials. In addition, school administrators may open and examine student lockers, desks and all school property assigned to students for general and specific inspections at any time.

"Sniffer" dogs may properly be used to discover prohibited items concealed in school property assigned to students.

Illegal items or other possessions or substances reasonably determined to be a threat to the safety or security of others will be seized by school authorities. These items will immediately be turned over to law enforcement officials for disposition as they see fit. The Superintendent may designate school personnel to transport any seized dangerous weapons, controlled dangerous substances, alcoholic beverages, or missing or stolen property that might be in a student's possession from a school site to a centralized location within the school district or to local law enforcement offices for lawful disposal. While in transport, the designated school personnel shall carry their school identification and a letter from the superintendent confirming their authority to transport the items for disposal. All items transported for disposal shall be transported in a locked container.

Items which are used to disrupt or interfere with the educational process will be temporarily removed from student possession.

Reference: OKLA. STAT. tit. 70, § 24-102

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: September 13, 2021; August 14, 2023; September 11, 2023; August 12, 2024, September 8, 2025; May 11, 2026

ADMINISTRATION OF MEDICINE TO STUDENTS

Purpose

The purpose of this policy is to identify when district personnel are authorized to administer medication to students, when students are authorized to self-medicate and how district personnel will maintain, administer, monitor and dispose of student medication.

Definitions

For purposes of this policy, these terms have the following definitions:

"Medicine" or ‘‘medications’’ includes prescription medications, opioid antagonists and over the-counter medicines such as but not limited to aspirin, cough syrup, medicated ointments and any other item used to treat an illness, disease or malady. This term shall not include ‘‘Sunscreen’’ as defined below.

‘‘Parent’’ means a parent, a court-appointed guardian or a person having legal custody of a minor student.

‘‘Physician’’ means a licensed physician or health care provider with prescriptive authority.

‘‘Sunscreen’’ means a compound topically applied to prevent sunburn.

Policy

Under Oklahoma law, a school nurse, an administrator or a designated district employee may administer prescription and nonprescription medications and assist in applying sunscreen to students.

Except as provided in this policy and in the district’s diabetes care and management policy, students may not retain possession of or self-administer any medicine. Violation of this rule will be reported to the student's parent and may result in discipline, including out-of-school suspension.

As further set out below, the district retains the discretion to reject requests for the administration of medication or application of sunscreen and to discontinue the administration of medication or application of sunscreen.

The parent must deliver the student’s medicine to the school nurse or school administrator in its original container with the parent’s written authorization for administration of the medicine. Sunscreen for application by a school nurse must be delivered to the school

nurse or school administrator in its original container with the parent's written authorization for application of sunscreen. The parent's authorization for either medicine or sunscreen must identify:

a. purpose of the medication,
b. time to be administered,
c. whether the medication must be retained by student for self-administration,
d. termination date for administering the medication, and
e. other appropriate information requested by the principal or the principal's designee.

The school nurse, an administrator or a designated employee will administer the medicine to the student or assist the student in applying sunscreen pursuant to the parent's instructions and the directions for use on the label or in the physician's prescription. The parent must complete a new authorization form annually and for each change of medication or sunscreen. The school will maintain the authorization form as a part of the student's health record. Authorization forms will be available in the principal's office. A parent who chooses to do so may come to the school and personally dispense medication or apply sunscreen to the student.

The administration of each school will keep a record of the students to whom medicine is administered or sunscreen is applied, the date of administration or application, the person who administered the medicine or applied the sunscreen and the name or type of medicine or sunscreen administered.

Medications and sunscreen will be stored in a separate locked drawer or cabinet that is readily accessible only to the persons who will administer the medication or sunscreen. Medications requiring refrigeration will be refrigerated in a secure area.

Any person administering medicine or applying sunscreen to a student will participate in training by October 1 of each year conducted by a school nurse or other health care professional. The training will include:

- Review of state statutes and school rules and regulations (including this policy) regarding administration of medication and application of sunscreen by school personnel;

- Procedures for administration, documentation, handling and storage of medication and sunscreen; and

- Medication needs of specific students, desired effects, potential side effects, adverse reactions and other observations.

Only those persons who successfully complete the training are authorized to administer medication or apply sunscreen. Each school site will maintain a current list of those authorized to administer medication and apply sunscreen at that site.

The district will require annual training for teachers and school employees who are directly responsible for students on the topics of food allergies, recognizing anaphylaxis, and instruction on how to administer Epinephrine. The training shall be completed before the school year begins or upon hiring the teacher or school employee. Documentation certifying completion of the required training shall be retained in the personnel file of the teacher or

school employee. The training may be provided online or in person by the school nurse or a recognized food allergy and anaphylaxis training program.

The administrator, or administrator's designee, will:

- Inform appropriate school personnel of the medication being administered
- Keep an accurate record of the administration of the medication
- Keep all medication in a locked cabinet except medication retained by a student per physician's order
- Return unused prescription medication to the parent or guardian only

The parent, guardian, or person having legal custody of the student is responsible for informing the designated official of any change in the student's health or change in medication.

If Epinephrine is administered to a student, a school employee shall contact 911 as soon as possible. The school district shall notify the parent or guardian of any student who experiences a possible allergic reaction as soon as possible.

Students who are able to self-administer specific medications, such as inhaled asthma medication, anaphylaxis medication, replacement pancreatic enzymes, or use specialized equipment, such as an inhaler or Epinephrine injector, or replacement pancreatic enzymes for cystic fibrosis; may do so provided such medication and specialized equipment are transported and maintained under the students' control in compliance with the following rules:

- A licensed physician or dentist must provide a written order that the student has a particular medical condition (asthma, anaphylaxis, cystic fibrosis, etc.), is capable of and has been instructed in the proper method of self- administration of medication. It is the parent's responsibility to contact the physician and have the physician complete and return the required order.
- The parent must provide a written authorization for self-administration of medication.
- Parents who elect self-administration understand and agree that the district, its agents and employees shall incur no liability for any adverse reaction or injury the student suffers as a result of self-administration of medication and/or use of specialized equipment.
- The written authorization will terminate at the end of the school year and must be renewed annually.
- If the parent and physician authorize self-medication, the district is not responsible for safeguarding the students' medications or specialized equipment.
- Students who self-medicate are prohibited from sharing or playing with their medication or special equipment. If a student engages in these activities the parent will be contacted and a conference will be scheduled with the parent, student, nurse and other appropriate persons.

- Students will not be allowed to self-administer:

    - Narcotics;
    - CBD/THC
    - Prescription pain killers;
    - Medication used to treat ADD/ADHD or other psychological or behavioral disorders; and
    - Other medication hereafter designated in writing by the district.

Except as otherwise provided by an individual student's school health plan, students may self-administer non-diabetes and non-anaphylaxis-related injectables only in the school office in the presence of authorized school personnel. Diabetes-related injectables will be administered in accordance with the school's diabetes care and management policy.

Students who self-medicate are encouraged to wear Medic Alert bracelets or necklaces.

The parent or guardian must provide the school with an emergency supply of the student's medication to be administered as authorized by state law.

Sunscreen

District staff will only assist the student in applying sunscreen with the parent's written authorization and according to label directions or, if applicable, written instructions from the student's physician. The sunscreen must be in the original container indicating:

- Ingredients; and

- Directions for Application.

Students who are able to self-apply sunscreen may do so provided such sunscreen is regulated by the Food and Drug Administration. Students may self-apply sunscreen without the written authorization of a parent, legal guardian or physician. All students are permitted to possess sunscreen that is regulated by the Food and Drug Administration.

Nonprescription Medication

District staff will only administer nonprescription medication with the parent's written authorization and according to label directions or written instructions from the minor student's physician. The medication must be in the original container that indicates:

- Student name (affixed to the container);

- Ingredients;

- Expiration date;

- Dosage and frequency;

- Administration route, i.e., oral, drops, etc.; and

- Other directions as appropriate.

School staff will only administer aspirin (acetylsalicylic acid) and products containing salicylic acid with written instructions from the student's physician. The parent must provide and maintain a supply of nonprescription medication for the student.

Prescription Medication

School staff will only administer prescription medication with written authorization and instructions. Prescription medication must be in the original container that indicates:

- Student name;
- Name and strength of medication and expiration date;
- Dosage and directions for administration;
- Name of the licensed physician or dentist;
- Date, name, address and phone number of the pharmacy.

The transportation of prescription medication to and from school is the responsibility of the parent/guardian

The parent must provide and maintain the supply of prescription medication for the student.

The parent must reclaim any remaining medication by the last official day of school closing or within seven days after the prescribing physician discontinues the medication.

The school nurse or designated employee will destroy in a nonrecoverable fashion in the presence of a witness any medication not timely reclaimed. The person who destroys the medication will record the following information:

- Date of destruction;
- Time of destruction;
- Name and quantity of medication destroyed; and
- Manner of destruction of medication

Any and all controlled substances will be destroyed according to state law.

The school nurse or designated employee will advise the principal if discontinuance of medication to a student is appropriate and assist in informing the parent. Legitimate reasons for discontinuing administration of medication include, but are not limited to the following:

- A legitimate lack of space or facility to adequately store specific medication;
- Lack of cooperation by the student, parent and/or prescribing doctor;
- An unexpected and/or adverse medical reaction to the medication at school, i.e., mood change, allergic reaction, etc., considered to be harmful to the health and well-being of the student;

- Any apparent change in the medication's appearance, odor, or other characteristics that raise reasonable doubts about the quality of the medication; and

- The medication expiration date has passed.

Narcotic Medication will not be stored or administered at school by school personnel. Custodial parents/guardians of the students being treated by a physician with prescription narcotic medication may administer such medication to their child during the school day. Parents/Guardians administering the narcotics medication should report to the main office to request their child for administration of the narcotic medication.

Under state law, the Board of Education, the School District, or employees of the District shall not be liable to the student or the student's parents or guardian for civil damages for any personal injuries to the student which result from acts of omissions of school employees in administering the narcotic medicine. Also the School district, its agents and employees shall incur no liability for any adverse reaction or injury suffered by the students as a result of the parent's/guardian's administration of narcotic medication during school hours.

District-Wide Emergency Use Stock Inhalers

Per Senate Bill 381, inhalers and spacer devices may be stocked for use when a student is in need of an inhaler and does not have access to a personal device. Any stock inhalers must be prescribed to the District by a licensed physician. Trained personnel may administer an emergency inhaler when they believe in good faith that a student is having respiratory distress. In the event that a stock inhaler is administered because of respiratory distress, EMS services will be contacted as soon as possible.

District-Wide Use of Epinephrine Injectors

Per Senate Bill 381, epinephrine injectors may be stocked for use when a student is in need of an epinephrine injection and does not have access to a personal device. Any stock epinephrine injectors must be prescribed to the District by a licensed physician. Trained personnel may administer an emergency Epinephrine injection when they believe in good faith that a student is having an anaphylactic reaction.

In the event that a stock epinephrine injection is administered because of an anaphylactic reaction, 911/EMS services and the student's guardian will be contacted as soon as possible.

There will be designated and trained personnel at each school site responsible for:

- Obtaining the Epinephrine injectors at each school site
- Ensuring appropriate training on the administration of the injectors for designated staff members
- Distributing and maintaining annual parent/guardian consent forms.

No Epinephrine injection shall be given if the proper written consent is not on file with the district.

District-Wide Use of Seizure-Rescue Medication (*Seizure-Safe Schools Act*)

Beginning January 1, 2022, at every school site that has a student enrolled who (1) has a seizure disorder and (2) has a seizure rescue medication or other medication prescribed to treat

seizure disorder symptoms approved by the Food and Drug Administration and any successor agency that is prescribed by the student's health care provider, the district shall have at least one employee who has met the training requirements necessary to (1) administer or assist with the self-administration of seizure medication, and (2) recognize the signs and symptoms of seizures and the appropriate steps to be taken to respond to these symptoms. For purposes of this training, the district is permitted by law to use any adequate and appropriate training programs or guidelines for training of school personnel in the seizure disorder care tasks covered under this policy.

Before a seizure rescue medication can be administered to a student to treat seizure disorder symptoms, the student's parent or legal guardian shall do the following:

A. provide the school with **written authorization** to administer the medication at school;

B. provide a **written statement** from the student's health care provider that shall contain the following information:

- the student's name,
- the name and purpose of the medication,
- the prescribed dosage,
- the route of administration,
- the frequency that the medication may be administered, and
- the circumstances under which the medication may be administered;

C. provide the **prescribed medication** to the school in its unopened, sealed package with the label affixed by the dispensing pharmacy; and

D. collaborate with school personnel to create a "**seizure action plan**," which means a written, individualized health plan designed to acknowledge and prepare for the health care needs of a student diagnosed with a seizure disorder.

The written authorization and seizure action plan shall be kept on file in the office of the school nurse or school administrator, and it shall be distributed to any school personnel or volunteers responsible for the supervision or care of the student. The written authorization and seizure action plan shall be effective only for the school year in which written authorization is granted and may be renewed each following school year upon fulfilling requirements A–D above. The district shall follow all administrative rules promulgated by the State Board of Education for the development and implementation of the seizure education program and the procedures for the development and content of seizure action plans.

Pursuant to state law, a school employee may not be subject to any disciplinary proceedings resulting from an action taken in compliance with *Seizure-Safe Schools Act*, and any employee acting in accordance with the provisions of that act shall be immune from civil liability unless the actions of the employee rise to the level of reckless or intentional misconduct. Any district employed school nurse shall not be responsible for and shall not be subject to disciplinary action for actions performed by a volunteer.

District-Wide Administration of an Opioid Antagonist (e.g., Naloxone)

District medical personnel (certified school nurse or any other nurse employed by or under contract with the district) or any other person designated by the Superintendent may administer, regardless of whether there is a prescription or standing order in place, an

emergency opioid antagonist for a suspected opioid overdose by a student or other individual exhibiting signs of an opioid overdose.

The Superintendent may authorize one or more district employees to receive training offered by the Department of Mental Health and Substance Abuse Services, a law enforcement agency or any other entity in recognizing the signs of an opioid overdose and administering an emergency opioid antagonist. The Superintendent may designate persons to receive this training who have been required to receive annual training in cardiopulmonary resuscitation and the Heimlich maneuver (70 Okla. Stat. §1210.199). Furthermore, if a person or persons designated and trained to administer an emergency opioid antagonist are absent, the Superintendent or designee may authorize any person, regardless of whether there is a prescription or standing order in place, to administer an emergency opioid antagonist to a student or other individual exhibiting signs of an overdose.

Any person administering an emergency opioid antagonist to a student or other individual at a school site or school-sponsored event, in a manner consistent with addressing opioid overdose, shall be covered by Oklahoma's Good Samaritan Act. In the event of a suspected overdose, the district and its employees or designees shall be immune from civil liability in relation to the administration of an emergency opioid antagonist.

Any first responder who administers or provides an emergency opioid antagonist in good faith and in a manner consistent with addressing opioid overdose is not liable for any civil damages as a result of any acts or omissions by such first responder except for committing gross negligence or willful wanton wrongs in administering or providing such emergency opioid antagonist. Pursuant to OKLA. STAT. tit. 63, § 1-2506.1, for purposes of this section a "first responder" shall include medical personnel at schools including any public or charter schools, technology center schools and institutions of higher education. "Medical personnel at schools" means a certified school nurse or any other nurse employed by or under contract with a district, any licensed practitioner of the healing arts, or any person designated by the school administration to administer an emergency opioid antagonist.

As used in this section, "emergency opioid antagonist" means a drug including, but not limited to, naloxone that blocks the effects of opioids and that is approved by the United States Food and Drug Administration for the treatment of an opioid overdose.

Reference:

OKLA. STAT. tit. 70, § 1-116.2, 70 § 1-116.3
OKLA. STAT. tit. 70, § 1210.199
OKLA. STAT. tit. 70, §1210.242
OKLA. STAT. tit. 63, §1-2506.1
OKLA. STAT. tit. 70, § 1210.183
OKLA. STAT. tit. 70, §1210.196.3
Okla. Stat. tit. 10, §170.1
Okla. Stat. tit. 59, §353.1
Okla. Stat. tit. 70, §1-116, et seq.

GIFTED STUDENT PROGRAM

The board of education recognizes that educational programs are necessary for gifted children as defined by state law.

Therefore, it is the policy of the board of education to cooperate fully with the State Department of Education in identifying gifted and talented children and in developing appropriate educational programs.

Children in this district will be considered for placement in the program in accordance with scores on standardized achievement and intelligence tests, records, and recommendations of teachers and parents.

Children identified as gifted and talented will be offered gifted and talented educational programs directly through the facilities of this district.

Philosophy

Those special gifts which qualify an individual to be considered gifted and talented must be valued as irreplaceable natural resources. Recognizing this, educators and community members must ensure that these special gifts are not ignored. To this end, experiences must be provided that are consistent with the abilities and potential of the gifted and talented child so that every child feels important and is empowered to be a happy, successful, and responsible human being.

Definitions

Students identified as intellectually gifted demonstrate potential on group or individual nationally standardized intelligence tests. Students identified as talented demonstrate specific academic ability on school administered achievement tests.

Goal Statement

The long-range goal of the gifted and talented program is to identify all gifted and talented students in the school system; to provide a differentiated program which will give students the opportunity to develop a level of competency consistent with their aptitudes, goals, and interests; and to meet the needs of gifted students educationally, psychologically, and socially.

Objective

The learning community will foster skills of gifted and talented students in critical thinking, independent learning, problem finding/problem solving, creativity, specific academic abilities, and social interaction.

Identification

A gifted and talented program committee will function for each building. The committee is to be composed of the superintendent, counselor, and gifted and talented program coordinator. Committee involvement shall include program development, implementation, and evaluation.

The screening process for the gifted and talented program will be conducted according to the school system's schedule for administering group tests.

Multicriteria evaluations may include:

1. Referral: professional, peer, parent, self;

2. Measures of achievement;

3. Measures of performance; and

4. Scales, inventories, checklist.

All students scoring in the top three percentile on a nationally standardized intelligence test are considered gifted. Those students not scoring at or above the 97th percentile may be referred for an individual intelligence test. Referrals may be made by teachers, parents, guardians, peers, or students themselves.

All students scoring in the top five percentile on a nationally standardized achievement subtest (which may include total reading, total language, total math, social studies, and science) are considered talented in a specific academic area.

Placement Criteria

Students who score at the 97th percentile or above on a nationally normed test of intellectual ability shall be served in the gifted and talented program. Students who score at the 95th percentile or above on any subtest of a nationally normed test of achievement shall be served. Subtests may include total reading, total language, total math, social studies, and science. In addition, students who score in the top three percent of their local ethnic group on a nationally standardized achievement or intelligence test shall be served. The "standard error of measurement" may be used in placement decisions.

Notification

Parents will be notified in writing of their child's placement in the gifted and talented program. The district shall provide a gifted and talented program summary to the parents of identified students.

Procedural Safeguards

Specific areas of concern, including procedural safeguards are as follows:

1. Written parental consent must be obtained for individual evaluation or placement of a student in the gifted and talented program;

2. Parents may request retesting one time only. This request should be written, addressed to the superintendent;

3. Written appeals regarding placement may be directed to the gifted and talented program committee. Every effort will be made to meet with the parent within 15 days;

4. Test scores from other schools can be considered for possible placement by the gifted and talented program committee;

5. A review will be conducted annually on students' performance and progress; and

6. Parents may withdraw their child from the gifted and talented program. A written request is to be directed to the superintendent.

Program Description

A differentiated education designed to meet the gifted and talented students' needs and interests shall be provided through one or more of the following options:

1. Enrichment of content;

2. Acceleration of content;

3. Individualized instruction;

4. Honors classes;

5. Academic competition;

6. Cross-grade grouping;

7. Special interest classes;

8. Concurrent enrollment;

9. Guided research;

10. Resource room;

11. Learning centers;

12. Credit by examination;

13. Pull-out enrichment classes (for elementary gifted students only); and

14. Other.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: August 12, 2024

STUDENT ATTENDANCE

The board of education believes that in order for students to realize their fullest potential from educational efforts, they should attend all classes to the extent possible. Realizing that some absences may be beyond a student's control, the board has adopted a policy requiring students to be in attendance a minimum of 90% each semester to earn credit for any course in which the student is enrolled. Exceptions to this requirement will be considered by the board on an individual, case by case, basis.

Absences

Excused absence will be granted for the following reasons:

1. Illness of the student or immediate family member;
2. Family emergencies;
3. Death of an immediate family member;
4. Medical appointments;
5. Legal matters, including service on a grand, multi-county grand, or petit jury;
6. Travel to and from and observance of holidays required by student's religious affiliation; and
7. Extenuating circumstances deemed necessary by the principal.

It is the responsibility of the parent to notify the school between 7:45 a.m. and 8:30 a.m. if the child is to be absent that day for one of the above reasons. Parents are required to contact the school and provide documentation regarding illnesses, court appearances, first attempts for driver's license, family emergencies or other reasons for student absence. The student must make up all work missed, and, if timely submitted, the district will accept it at full credit. It is the responsibility of the student, on the day of return, to make arrangements to see that the work is made up.

Any student and/or parent of a student who exceeds the 90% attendance rule and feels that he or she has extenuating circumstances that explain the absences that exceed this number may request review by the district's attendance committee. The attendance appeals committee will consist of an administrator, the guidance counselor, and a designated faculty member. This committee may, at the discretion of the superintendent be the same as the Internal Activities Review Committee ("IARC"). Consideration will be given as to the reason for the absences (such as extended illnesses of the student or immediate family members as documented by a physician, family emergencies or death of an immediate family member)

as well as to the attempts by parents to minimize the absenteeism.

A student will also receive an excused absence from attending school for the purpose of receiving speech therapy, occupational therapy, or any other service related to the student's individualized education program developed pursuant to the Individuals with Disabilities Education Act (IDEA), ***provided*** (1) the parent, guardian, or other person having custody or control of the student submits a written request for the excused absence, and (2) the district receives documentation from the provider of the therapy or other service.

School Activities

1. Students involved in school sponsored activities are limited to ten absences per school year per class period. Ten additional absences may be granted for state and national events as long as the student has earned the right to participate *and* is participating in the state or national event.

2. Students will be allowed to make up any work missed while participating but must make up the work within the period established by the assigned teacher. Reasonable time to make up work missed shall not be unreasonably withheld.

3. Absences for the following reasons will not be charged against the ten absence limit:

    a. Activities held on campus, sanctioned by the superintendent;
    b. Serving as a Page in the Legislature;
    c. On campus visits by college representatives/vocational representatives;
    d. College entrance exams;
    e. Field trips in conjunction with a unit being taught in an academic class;
    f. Students excused to make appearances before local civic groups;
    g. Grade level field trips to area technology centers.

4. Students must assume responsibility for their absences. Student responsibilities include but are not limited to notifying instructors of an absence, a reasonable time prior to the absence, making arrangements with instructors to make up work, and working cooperatively with teachers and administrators when absences cannot or will not be approved even though a student's request is not otherwise unreasonable.

5. Principals will keep or cause to be kept a record of those days or class periods missed by students due to school sponsored activities. These records will be open for inspection by the student, parent or guardian of the students, sponsors, coaches and teachers with a need to know this information.

6. Absences that exceed the maximum permitted by this policy and which do not have the written permission of the IARC shall be counted as an unexcused absence in accordance with board policy.

Sponsor/Teacher or Coach Responsibilities

1. Sponsors/teachers or coaches are required to prepare a list of activities that the student may attend during the school year and provide students with the

list. The same list must be furnished to the principal at the beginning of the school year but no later than fifteen days following the first day of school for students. The material prepared by sponsors/teachers or coaches shall include the criteria for eligibility for the particular activity for which the sponsor/teacher or coach is responsible, the goals of the activity and the manner in which the goals meet school and community expectations.

2. Sponsors/teachers or coaches should assist students in selecting those activities that will benefit the student and/or the school.
3. Sponsors/teachers or coaches must check activity absences regularly in order to help students plan for future absences.

4. Sponsors/teachers or coaches must be fully familiar with this policy and capable of mentoring students to avoid unnecessary and unproductive absences from classes.

5. No sponsor/teacher or coach shall misrepresent the reason for a student's absence or sanction a student's absence from a class period that is not related to the school sponsored activity in which the student is involved.

Internal Activity Review Committee (for extracurricular activities)

The board of education has established an IARC composed of the following positions: the principal or principal's designee, regular classroom teacher (in a core subject), athletic director, coach/sponsor, parent. The individuals who shall serve on this committee shall be appointed annually by the board following a recommendation by the superintendent. The superintendent may suggest additional individuals to serve on the committee but shall not have fewer than 5 individuals recommended to serve on the committee. The committee shall resolve questions regarding excused or unexcused absences related to extracurricular activities using procedures that the committee shall designate which allow for consideration of the district's policy, emphasis on the importance of students attending classes on a regular basis, and an opportunity for the student and student's representatives and school representatives to be fully heard regarding the treatment of and consequence of an absence. The committee shall also be responsible for resolving any dispute regarding whether a student made up his or her work within a reasonable period designated by the instructor or administrator.

Any party who objects to a decision of the IARC may appeal the decision to the board of education by filing an appeal within 5 business days of the IARC's written decision with the clerk of the board of education with a copy of the appeal to the superintendent of Schools.

In addition to the above responsibilities the IARC shall review and recommend to the board policy changes or additions designed to ensure that the district's treatment of school attendance and opportunity for participation in extracurricular activities is consistent with applicable law, school board policies and rules and regulations adopted by the Oklahoma State Board of Education and athletics associations in which the district participates.

The board of education has final authority in deciding if a student's deviation from the ten day or class period rule shall be approved. The board can exercise this authority by conducting a hearing in which all sides shall be heard or can exercise its authority by voting to uphold a decision of the IARC or voting not to reconsider the IARC's decision or findings

in a particular matter.

Unexcused Absence

This is any absence that does not fall within one of the above categories. Work will be made up with a grade adjustment.

Truancy

A student is considered truant when absent from school without the parents' knowledge or leaving school without permission of the principal or his/her designated representative. Students who are truant will be subject to disciplinary action and will be ineligible to participate in school activities for the day. Truant students will make up all missed work with a grade adjustment.

Tardies

1. A student is tardy who is not in the classroom when the bell to begin the period sounds.

2. A student who is more than fifteen (15) minutes late is counted absent for the period.

Reference: OKLA. STAT. tit. 70, § 10-105

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021

WITHDRAWAL FROM SCHOOL

The board of education realizes that a student may need to withdraw from school because of residence relocation or other valid reason. In such a case, the student must notify the principal who will assist the student with out-processing. All district-owned books, supplies, equipment, etc. must be returned to the teachers who distributed them. A clearance slip with the appropriate teachers' signatures must be returned to the principal's office. Any refunds due will be made at that time.

Students are reminded that transcripts and other records will be forwarded to the new school only after proper clearance has been accomplished.

On a quarterly basis as scheduled by the State Department of Education, the superintendent will notify the Department of the name, address, race and age of any student dropping out of school during the preceding quarter. A dropout is any student who is under the age of 19 and has not graduated from high school and is not attending any public or private school or is not otherwise receiving an education pursuant to law for the full term the schools of the district in which the student resides are in session.

Whenever a student over 14 years of age and under 18 years of age withdraws from school, the attendance officer shall notify the Department of Public Safety (DPS) of the withdrawal through a documentation of enrollment status form. When the withdrawal from school is due to circumstances beyond the control of the student or is pursuant to lawful excuse, as confirmed in writing by a parent/guardian of the student, no notice shall be sent to DPS, or if sent, the notice will be disregarded by DPS. The board of education or appropriate designee shall be the sole judge of whether the withdrawal of a student is due to circumstances beyond the control of the student or is made pursuant to lawful excuse.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021

TESTING STUDENTS WITH REGARD TO THE USE OF ALCOHOL AND ILLEGAL CHEMICAL SUBSTANCES

The board of education, with the intent that all students have notice and knowledge of the ramifications concerning alcohol and illegal chemical substance use, possession, purchase, sale or distribution when the student is on school property, at a school sponsored event, in school vehicles, or going to or from a school sponsored event hereby adopts the following policy.

Statement of Purpose and Intent

1. The safety of students and employees of the district is of paramount concern to the board.

2. Students who are under the influence of alcohol or an illegal chemical substance when the student is on school property, at a school sponsored event, in school vehicles, or going to or from a school sponsored event pose serious safety risks to students, employees and the public.

3. The use of alcohol and illegal chemical substances by students has a direct and adverse effect on the safety, personal health, attendance, productivity and quality of education of all students.

4. The board recognizes that all students have certain personal rights guaranteed by the Constitutions of the United States of America and the State of Oklahoma. This policy will not infringe on those rights.

5. Due to the devastating impact that the use by students of alcohol and illegal chemical substances can have on the safety of students and employees and their adverse effect on a student's ability to perform as a student, the board will not tolerate students who use, possess, distribute, purchase, sell or are under the influence (as defined in the policy) of alcohol or illegal chemical substances while on school property, at a school sponsored event, in school vehicles, or going to or from a school sponsored event.

6. This policy will apply to all students of the district.

7. Violations of this policy will subject the student to disciplinary action, including out-of-school suspension from school.

Definitions

1. "Illegal chemical substance" means any substance which an individual may not sell, possess, use, distribute or purchase under either Federal or Oklahoma law. "Illegal chemical substance" includes, but is not limited to, all scheduled drugs as defined by the Oklahoma Uniform Controlled Dangerous Substances Act, all prescription drugs

obtained without authorization and all prescribed drugs and over the counter drugs being used for an abusive purpose. By way of example only, the drugs which may be tested for are: amphetamines, cannabinoids, cocaine, phencyclidine (PCP), hallucinogens, methaqualone, opiates, barbiturates, benzodiazepines, synthetic narcotics, designer drugs, or any metabolite of any of these substances.

2. "Alcohol" means ethyl alcohol or ethanol and includes "low point" beer.

3. "Under the influence" means any student of the district who has any alcohol or illegal chemical substance or the metabolites thereof present in the student's body in any amount which is considered to be "positive" for such alcohol or drug or drug metabolites using any scientifically substantiated alcohol or drug use screen test and alcohol or drug use confirm test.

4. "Positive" when referring to an alcohol or drug use test administered under this policy means a toxicological test result which is considered to demonstrate the presence of alcohol or an illegal chemical substance or the metabolites thereof using the cutoff standards or levels determined by the State Board of Health for drug or alcohol testing of students or in the absence of such State Board cutoff levels, the cutoff levels customarily established by the testing laboratory administering the alcohol or drug use test.

5. "School property" means any property owned, leased or rented by the district, including but not limited to school buildings, parking lots and motor vehicles.

6. "Drug or alcohol use test" means a chemical test administered for the purpose of determining the presence or absence of alcohol or illegal chemical substances or their metabolites in a student's blood, bodily tissue, fluids, products, urine, breath or hair.

7. "Reasonable suspicion" means a belief that a student is using or has used alcohol or drugs in violation of this policy drawn from specific objective and articulable facts and reasonable inferences drawn from those facts in the light of experience, and may be based upon, among other things:

   A. Observable phenomena, such as:

      i. the physical symptoms or manifestations of being under the influence of alcohol or a drug while on school property, at a school sponsored event, in school vehicles, or going to or from a school sponsored event; or

      ii. the direct observation of alcohol or drug use while on school property, at a school sponsored event, in school vehicles, or going to or from a school sponsored event.

   B. A report of drug or alcohol use while on school property, at a school sponsored event, in school vehicles, or going to or from a school sponsored event, provided by reliable and credible sources;

   C. Evidence that a student has tampered with an alcohol or drug test; or

D Evidence that a student is involved in the use, possession, sale, solicitation or transfer of alcohol or drugs while on school property, at a school sponsored event, in school vehicles, or going to or from a school sponsored event.

Procedures for Alcohol or Illegal Chemical Substance Testing

1. Any alcohol or drug use test administered under the terms of this policy will be administered by or at the direction of a professional laboratory licensed by the Oklahoma State Department of Health and using scientifically validated toxicological methods that comply with rules promulgated by the State Department of Health. The professional laboratory shall be required to have detailed written specifications to assure chain of custody of the samples, proper labeling, proper laboratory control and scientific testing, with all samples to be taken under the supervision of appropriate laboratory employees at a school site or site designated by the laboratory. All aspects of the alcohol and drug use testing program, including the taking of samples, will be conducted so as to safeguard the personal and privacy rights of students to the maximum degree possible and shall be conducted under reasonable sanitary conditions. The test sample shall be obtained in a manner which minimizes its intrusiveness.

   In the case of urine samples, the samples must be collected in a restroom or other private facility behind a closed stall; a sample shall be collected in sufficient quantity for splitting into two (2) separate samples, pursuant to rules of the State Board of Health, to provide for any subsequent independent confirming analysis of the first sample; the test monitor shall not observe any student while the sample is being produced but the test monitor may be present outside the stall to listen for the normal sounds of urination in order to guard against tampered samples and to insure an accurate chain of custody; and the test monitor may verify the normal warmth and appearance of the sample. If at any time during the testing procedure the test monitor has reason to believe or suspect that a student is tampering with the sample, the test monitor may stop the procedure and inform the test coordinator. The test monitor shall be of the same gender as the student giving the sample.

   If a student is determined to have tampered with any specimen or otherwise engaged in any conduct which disrupts the testing process of any student, then the student will be deemed to have violated this policy and will be subject to disciplinary action, including out-of-school suspension from school.

   The test monitor shall give each student a form on which the student may, but shall not be required to, list any medications he has taken or any other legitimate reasons for having been in recent contact with alcohol or illegal chemical substances.

2. If the initial drug use test is positive for the presence of an illegal chemical substance or the metabolites thereof, the initial test result will be subject to confirmation by a second and different test of the same sample. The second test will use an equivalent scientifically accepted method of equal or greater accuracy as approved by rules of the State Board of Health, at the cutoff levels determined by board rules. A student will not be subject to disciplinary procedures unless the second test is positive for the presence of illegal chemical substances or the metabolites thereof.

3. If an initial alcohol use test is positive for the presence of alcohol, the initial test result will be subject to confirmation by a second test using any scientifically accepted method approved by rules of the State Board of Health, at the cutoff levels determined by board rules.

4. Upon written request, the student will be furnished with a free copy of all test results performed under this policy. All test records and results will be confidential and kept in files separate from the student's cumulative records. All tests required of a student by the district under this policy shall be at district expense.

5. Any student who is subject to disciplinary action as a result of being under the influence of alcohol or an illegal chemical substance while on school property, at a school sponsored event, in school vehicles or going to or from a school sponsored event will be given a reasonable opportunity, in confidence, to explain or rebut the alcohol or drug use test results. If the student asserts that the positive test results are caused by other than consumption of alcohol or an illegal chemical substance by the student, then the student will be given an opportunity to present evidence that the positive test result was produced by other than consumption of alcohol or an illegal chemical substance. The district will rely on the opinion of the district's laboratory which performed the tests in determining whether the positive test result was produced by other than consumption of alcohol or an illegal chemical substance.

6. The laboratory reports and results of alcohol and drug use testing will be maintained on a confidential basis except as otherwise required by law. The laboratory performing alcohol or drug use tests for the district will not report on or disclose to the district any physical or mental condition affecting a student which may be discovered in the examination of a sample other than the presence of alcohol or illegal chemical substances or the metabolites thereof. The use of samples to test for any other substances will not be permitted.

Student Alcohol and Drug Use Tests - When Required

1. Any student whose behavior while on school property, at a school sponsored event, in school vehicles, or going to or from a school sponsored event creates a reasonable individualized suspicion that the student is under the influence of alcohol or an illegal chemical substance may be required to take an alcohol and/or drug use test. Nothing in this policy shall require alcohol and/or drug use testing of any student nor prohibit the district from disciplining any student in the absence of an alcohol or drug use test of the student.

2. Any student who refuses to take an alcohol or drug use test when so required under the provisions of this policy will be deemed to have violated this policy and will be subject to disciplinary action including out-of-schools suspension from school to the same extent as if the student tested positive for the presence of alcohol or illegal chemical substances.

Medical Marijuana

1. Pursuant to OKLA. STAT. tit. 63, § 420 *et. seq.*, unless failure to do so would cause the school district to imminently lose a monetary or licensing related benefit under Federal law or regulations, the school district will not discriminate against a student

in enrollment or otherwise penalize a student solely on the basis of the student's status as a medical marijuana holder.

2. The school district will not subject a student holding a valid medical marijuana license to disciplinary action based solely on a positive drug test for marijuana or the metabolites thereof. Students who use, possess, sale, distribute, purchase or are under the influence of medical marijuana or medical marijuana product may be subject to discipline pursuant to this policy regardless of license holder status.

3. As used in this section, a determination of whether a student is "under the influence of medical marijuana or medical marijuana product" shall be based on the totality of circumstances. Circumstances that may contribute to a determination that the student is under the influence may include, but are not limited to:

   A. Observation of any of the conduct or phenomenon described below:

      (1) the smell of marijuana on around the individual;

      (2) Disorganized thinking;

      (3) Paranoia and/or confusion;

      (4) Bloodshot eyes;

      (5) Increased heart rate;

      (6) Increased appetite; or

      (7) Loss of Coordination and

   B. Any circumstance that would permit the school district to engage in "reasonable suspicion" drug or alcohol testing of the student under this policy.

<u>Student Use, Sale, Possession, Distribution, Purchase or Being Under the Influence of Alcohol or Illegal Chemical Substance</u>

Any student who possesses, uses, distributes, purchases, sells or is confirmed by alcohol or drug use tests to be under the influence (as defined by this policy) of alcohol or an illegal chemical substance while on school property, at a school sponsored event, in school vehicles, or going to or from a school sponsored event or as a result of alcohol or drug use tests conducted under this policy will be subject to disciplinary action, including out-of- school suspension from school.

<u>Persons Authorized to Order Alcohol or Drug Testing</u>

The following persons have the authority to require alcohol or drug use testing of students

under this policy:

1. The superintendent;

2. Any employee designated for such purposes by the superintendent or the board.

Out-of-School Suspension Due Process Procedures

Any student who is subject to an out-of-school suspension for the violation of this policy shall be afforded appropriate due process procedures allowed by the district's policy on student behavior.

Circulation of Policy

This policy shall be given broad circulation to all students of the district which shall include prominent posting at various places in the district.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021

EXTRACURRICULAR ACTIVITIES
STUDENT ALCOHOL AND DRUG TESTING

The board of education, in order to protect the health and safety of students participating in extracurricular activities and to educate and direct students participating in extracurricular activities away from drug and alcohol use and abuse, thereby setting an example for all other students of the district, adopts the following policy for testing of students participating in extracurricular activities for the use of illegal drugs, alcohol and performance enhancing drugs.

Statement of Purpose and Intent

1. It is the desire of the board, administration and staff that every student in the district refrain from using or possessing alcohol and illegal or performance enhancing drugs. Notwithstanding this desire, the administration and board of education realize that their power to restrict the possession or use of alcohol and illegal or performance enhancing drugs is limited. Therefore, except as provided below, the sanctions of this policy relate solely to limiting the opportunity of any student determined to be in violation of this policy to participate in extracurricular activities. This policy is intended to supplement and complement all other policies, rules and regulations of the school district regarding possession or use of alcohol and illegal or performance enhancing drugs.

2. Participation in school-sponsored extracurricular activities at the school district is a privilege, not a right. Students who participate in these activities are respected by the student body and are expected to conduct themselves as good examples of behavior, sportsmanship and training. Accordingly, students who participate in extracurricular activities carry a responsibility to themselves, their fellow students, their parents and their school to set the highest possible example of conduct, which includes avoiding the use or possession of alcohol and illegal or performance enhancing drugs.

3. The purpose of this policy is to prevent alcohol and illegal or performance enhancing drug use, to educate students who participate in extracurricular activities as to the serious physical, mental and emotional harm caused by alcohol and illegal or performance enhancing drug use, to alert students participating in extracurricular activities who have possible substance abuse problems to the potential harms of use, to prevent injury, illness and harm as a result of alcohol and illegal or performance enhancing drug use, and to strive within the school district for an environment free of alcohol and illegal or performance enhancing drug possession and use. This policy is not intended to be disciplinary or punitive in nature. The sanctions of this policy relate solely to limiting the opportunity of any student who participates in extracurricular activities and who is found to be in violation of the policy to participate in extracurricular activities. There will be no academic sanction solely for a violation of this policy. Notwithstanding the foregoing, a student may be

disciplined, including suspended out of school, if a violation of this policy also results in a violation of the school district's student behavior policy.

Definitions

- Extracurricular - means any school district sponsored team, club, organization or activity in which student participation is not required as a part of the school district curriculum and in which students represent the school district in competitions sanctioned by the Oklahoma Secondary Schools Activities Association.

- Student extracurricular activities participant - means any student participating in any competitive extracurricular activity.

- Student Athlete - means a 6th-12th grade member of any school district sponsored interscholastic sports team, including athletes and cheerleaders.

- Coach/Sponsor - means any person employed by the school district to coach athletic teams of the school district, to act as a sponsor or coach of a cheerleader team of the school district, or to serve as sponsor for any other extracurricular activity.

- Athletics and athletic activity - means participation by a student athlete on any athletic team or cheerleader team sponsored by the school district.

- In-season - means anytime during the day, night, weekends or holidays, including all time in and away from school during the entire school year for all student extracurricular activities participants.

- Alcohol - means ethyl alcohol or ethanol and any alcoholic beverage and includes "low-point beer" as defined by Oklahoma law.

- Illegal drugs - means any substance which an individual may not sell, possess, use, distribute or purchase under either federal or Oklahoma law. "Illegal drugs" includes, but is not limited to, all scheduled drugs as defined by the Oklahoma Uniform Controlled Dangerous Substance Act, all prescription drugs obtained without authorization and all prescribed and over-the-counter drugs being used for an abusive purpose, and paraphernalia to use such drugs.

- Performance enhancing drugs - include anabolic steroids and any other natural or synthetic substance used to increase muscle mass, strength, endurance, speed or other athletic ability. The term "performance enhancing drugs" does not include dietary or nutritional supplements such as vitamins, minerals and proteins which can be lawfully purchased in over-the-counter transactions.

- Drug or alcohol use test - means a chemical test administered for the purpose of determining the presence or absence of alcohol or illegal or performance enhancing chemical substances or their metabolites in a student's blood, bodily tissue, fluids, products, urine, breath or hair.

- Random selection basis - means a mechanism for selecting student extracurricular activities participants for drug and/or alcohol use testing that:

- results in an equal probability that any student extracurricular activity participant from a group of student extracurricular activity participants subject to the selection mechanism will be selected, and

- does not give the school district discretion to waive the selection of any student extracurricular activity participant selected under the mechanism.

- Positive - when referring to an alcohol or drug use test administered under this policy means a toxicological test result which is considered to demonstrate the presence of alcohol or an illegal or a performance enhancing drug or the metabolites thereof using the standards customarily established by the testing laboratory administering the drug or alcohol use test.

- Reasonable suspicion - means a suspicion based on specific personal observations concerning the appearance, speech or behavior of a student extracurricular activity participants and reasonable inferences drawn from those observations in the light of experience. Information provided by a reliable source, if based on personal knowledge, shall constitute reasonable suspicion. In the context of performance enhancing drugs, reasonable suspicion specifically includes unusual increases in size, strength, weight or other athletic abilities.

- Games/competitions - mean regular season, tournament and playoff games/competitions and do not include practice games and scrimmages.

<u>Participation and Procedures</u>

1. Alcohol and illegal or performance enhancing drug possession or use is incompatible with participation in extracurricular activities on behalf of the school district. For the safety, health and well-being of the student extracurricular activity participants of the school district, the school district has adopted this policy for use by all participating students at the 6th-12th grade level. Any student found to be in possession of, or having used alcohol or illegal or performance enhancing drugs, either by observation or drug or alcohol use test, will be considered to have violated this policy.

2. Each student extracurricular activity participant shall be provided with a copy of this policy and the "Student Extracurricular Activity Participant Alcohol and Illegal or Performance Enhancing Drugs Contract" (the "Contract") which shall be read, signed and dated by the student, parent or custodial guardian and a coach/sponsor before such student shall be eligible to practice or participate in any extracurricular activity. No student shall be allowed to practice or participate in any extracurricular activity unless the student has returned the properly signed Contract. Provided, however, the lack of a signature on the part of a coach/sponsor shall not invalidate consent to drug testing under the Contract.

3. The principal and sponsor, or, in the case of student athletes only, the athletic director and applicable coach, shall be responsible for determining whether a violation of this policy has occurred when an observation of possession or use of alcohol or illegal drug by a student extracurricular activity participant has been reported. If a violation of the policy is determined to have occurred by a student extracurricular activities participant other than a student athlete, the principal will

contact the student, the sponsor, and the parent or custodial guardian of the student and schedule a conference. If a violation of the policy is determined to have occurred by a student athlete, the athletic director will contact the student, the sponsor or head coach, the applicable principal, and the parent or custodial guardian of the student and schedule a conference. At the conference, the violation of the policy will be described and the restrictions explained.

4. The Contract shall signify consent on the part of the student extracurricular activity participant and his or her parent(s)/guardian(s) for the district to obtain a urine sample from the student extracurricular activity participant for the purpose of performing a drug and/or alcohol use test. Such drug use testing may occur upon any of the following events:

   A. For student athletes, as part of the annual physical examination. Student athletes who have physical examinations performed by their personal physicians must nonetheless sign the Contract and comply with all policy requirements.

   B. For student extracurricular activity participants other than student athletes, either

      (i) prior to the start of the season for the extracurricular activity in which a student extracurricular activities participant competes, or

      (ii) if the extracurricular activity has no established season, within one week after the first day of classes at the beginning of the school year;

   C. As chosen by the random selection basis described in paragraph 5 below; and

   D. At any time, the principal, coach/sponsor, or—in the case of student athletes—the athletics director requests a drug and/or alcohol use test by a student extracurricular activities participant, based on reasonable suspicion of possession or use of alcohol and/or illegal or performance enhancing drugs.

5. Drug and/or alcohol use testing for student extracurricular activities participants will also be chosen on a random selection basis monthly from a list of all in-season student participants. The school district will determine a monthly number of student names to be drawn at random to provide a urine sample for drug and/or alcohol use testing for alcohol and/or illegal or performance enhancing drugs.

6. The school district will set a fee charge to be collected from each student when the Contract is signed and returned to the coach or sponsor.

7. Any alcohol or drug use test required by the school district under the terms of this policy will be administered by or at the direction of a professional laboratory chosen by the school district using scientifically validated toxicological methods. The professional laboratory shall be required to have detailed written specifications to assure chain of custody of the specimens, proper laboratory control and scientific testing.

8. All aspects of the alcohol or drug use testing program, including the taking of specimens, will be conducted so as to safeguard the personal and privacy rights of the student extracurricular activities participants to the maximum degree possible. The test specimen shall be obtained in a manner designed to minimize intrusiveness of the procedure. In particular, the specimen must be collected in a restroom or other private facility behind a closed stall. The principal or athletic director shall designate a sponsor or coach or other adult person of the same sex as the student to accompany the student to a restroom or other private facility behind a closed stall. The monitor shall not observe the student while the specimen is being produced, but the monitor shall be present outside the stall to listen for the normal sounds of urination in order to guard against tampered specimens and to insure an accurate chain of custody. The monitor shall verify the normal warmth and appearance of the specimen. If at any time during the testing procedure the monitor has reason to believe or suspect that a student is tampering with the specimen, the monitor may stop the procedure and inform the principal or athletic director who will then determine if a new sample should be obtained. If a student is determined to have tampered with any specimen or otherwise engaged in any conduct that disrupts the testing process of any student, then the student will be deemed to have committed a second offense under this policy and the sanctions for a second offense will be imposed. The monitor shall give each student a form on which the student may list any medications he/she has taken or any other legitimate reasons for having been in contact with illegal drugs or performance enhancing drugs in the preceding thirty
(30) days. The medication list may be submitted to the lab in a sealed and confidential envelope.

9. If an initial drug use test is positive, the initial test result will be subject to confirmation by a second and different test of the same specimen. The second test will use an equivalent scientifically accepted method of equal or greater accuracy. A specimen shall not be reported positive unless the second test is positive for the presence of an illegal drug or performance enhancing drug or the metabolites thereof. If an initial alcohol use test is positive for the presence of alcohol, the initial test result will be subject to confirmation by a second test using any scientifically accepted method. The unused portion, if any, of a specimen that tested positive for alcohol or illegal or performance enhancing drugs shall be preserved by the laboratory for a period of six (6) months.

10. If the alcohol or drug use test for any student extracurricular activities participant has a positive result, the laboratory will contact the principal or the athletic director with the results. In the case of student extracurricular activities participants who are not athletes, the principal will contact the student, the sponsor, and the parent or custodial guardian of the student and schedule a conference. In the case of student athletes, the athletic director will contact the student, the sponsor or head coach, the applicable principal, and the parent or custodial guardian of the student and schedule a conference. At the conference, the principal or the athletic director will solicit any explanation for the positive result and ask for doctor prescriptions of any drugs that the student was taking that might have affected the outcome of the alcohol or drug use test. The principal or the athletic director will also inform the student and his/her parent or custodial guardian of the ability to re-test the remaining specimen described in paragraph 11 below.

11. If the student and his/her parent or custodial guardian desire another test of the remaining portion, if any, of the specimen, the principal or athletic director will arrange for another test at the same laboratory or at another laboratory agreeable to the principal or athletic director. Any such re-test shall be at the expense of the student and his/her parent or custodial guardian. Such re-test must be requested during the conference described in paragraph 10. Should a re-test be requested, no determination shall be made as to whether there is a policy violation until the re-test has been completed; however, the student shall be ineligible for participation in extracurricular activities pending the results of such re-test. However, if the re-test returns a positive result, any days that a student is ineligible for participation in extracurricular activities under this paragraph shall be counted towards the sanction issued under this policy.

12. If during the conference described in paragraph 10, the student extracurricular activities participant asserts that the positive test results are caused by other than consumption of alcohol or an illegal or performance enhancing drug by the student, then the student will be given an opportunity to present evidence of such to the principal or to the athletic director. The school district will rely on the opinion of the original laboratory that performed the test in determining whether the positive test result was produced by other than consumption of alcohol or an illegal or performance enhancing drug. Should an alternative reason for the positive result be provided, no determination shall be made as to whether there is a policy violation until the original laboratory has been consulted; however, the student shall be ineligible for participation in extracurricular activities pending such consultation. However, if a policy violation is determined to have occurred, any days that a student is ineligible for participation in extracurricular activities under this paragraph shall be counted towards the sanction issued under this policy.

13. If a policy violation has been determined by the principal or the athletic director to have occurred, they will notify the student and his/her parent(s)/guardian(s).

14. A student who has been determined by the principal or the athletic director to be in violation of this policy shall have the right to appeal the decision to the superintendent or his/her designee(s). Such appeal must be lodged within five (5) business days of notice of the initial report of the offense, during which time the student will remain ineligible to participate in any extracurricular activities. The superintendent or his/her designee(s) shall then determine whether the original finding was justified. There is no further appeal right from the superintendent's decision and his/her decision shall be conclusive in all respects. Any necessary interpretation or application of this policy shall be the sole and exclusive judgment and discretion of the superintendent which shall be final and nonappealable.

15. Before a student extracurricular activities participant who has tested positive in an alcohol or drug use test may rejoin his/her extracurricular activity after a first or second offense, such student may be required to undergo one or more additional alcohol or drug use tests to determine whether the student is no longer using alcohol or illegal or performance enhancing drugs. The school district will rely on the opinion of the laboratory which performed or analyzed the additional alcohol or drug use test in determining whether a positive result in the additional alcohol or drug use test was produced by alcohol or illegal or performance enhancing drugs used by the student before the offense or by more recent use. In addition, a student

extracurricular activities participant who has tested positive in an alcohol or drug use test may be required to submit to one or more additional alcohol or drug use tests for up to a year following the date of the positive result, notwithstanding that such student has been permitted to rejoin his/her extracurricular activity.

16. All documents created pursuant to this policy with regard to any student will be kept in a confidential folder and will never be made a part of the student's cumulative folder nor be considered a "disciplinary" record.

Medical Marijuana

The school district recognizes that safety is a paramount concern in all extracurricular activities, and students under the influence of marijuana may endanger the participation of other students. Therefore, a student extracurricular activities participant who tests positive for marijuana or its metabolites shall be considered in violation of this policy and subject to the loss of the privilege to participate in extracurricular activities even if the participant is in possession of a valid medical marijuana license.

Violation

Any student who is determined by observation or by alcohol or drug use tests to have violated this policy shall be subject to the loss of the privilege to participate in extracurricular activities and offered educational and support assistance to stop using.

For the First Offense

Suspension from participation in all scheduled extracurricular activities (including all meetings, practices, performances and games/competitions) for 30 school days which may be reduced by 15 school days (five school days reduced for professional drug/alcohol evaluation/assessment and ten school days reduced for participating in and successfully completing at least four (4) hours of substance abuse education/counseling provided by the school district or an outside agency). A student extracurricular activities participant must miss a minimum of two (2) games/competitions. If the student is not competing in an extracurricular activity during any suspension period due to injury, academic ineligibility or the games or competitions for that sport or activity are finished or have not begun for that school year and, therefore, does not miss a minimum of two games/competitions during the suspension period, then the student will be required to miss the next two games/competitions after he or she returns from the injury, becomes eligible or the games or competitions resume in the following school year or begin later in the same school year. These restrictions and requirements shall begin immediately following the determination of a violation of this policy. Such suspension will extend into a succeeding competition season if necessary to fulfill the suspension.

For the Second or Subsequent Offense (in the same school year)

Complete suspension from participation in all extracurricular activities including all meetings, practices, performances and competition for eighteen (18) continuous and successive school weeks from the date of the determination of a violation of this policy. Such suspension will extend into a succeeding school year if necessary to fulfill the suspension. Offenses shall not accumulate from school year to school year;

the eighteen (18) week suspension from participation in all extracurricular activities shall come into play only when two (2) or more offenses are committed in the same school year.

Self-Referral

As an option to the consequences for a first offense only, a student may self-refer to the principal or athletic director or to a coach or sponsor before being notified of a policy violation or prior to being asked or required to submit to an alcohol or drug use test. A student who self-refers will be allowed to remain active in all extracurricular activities after the following conditions have been fulfilled: a conference has been held with the student, the principal or athletic director, the sponsor or coach, and the parent or custodial guardian of the student to discuss the policy violation; an alcohol or drug use test is provided by the student that is not positive, and a participation commitment by the student and parent for four (4) hours of substance abuse education/counseling provided by the school or an outside agency. Documentation of successful completion of this commitment must be provided to the principal or athletic director by the student or parent. A student who self-refers will, however, be considered to have committed his/her first offense under this policy. A self-referral may be used only once in a student's time in the school district.

<u>Refusal to Submit to Alcohol or Drug Use Test</u>

If, after signing the Contract, a student extracurricular activities participant refuses to submit to an alcohol or drug use test authorized under this policy, such student shall not be eligible to participate in any extracurricular activities including all meetings, practice, performances and competition for eighteen (18) continuous and successive school weeks. Such suspension will extend into a succeeding school year if necessary to fulfill the suspension.

Extracurricular Activities Participant Alcohol and Illegal or Performance Enhancing Drugs Contract

Statement of Purpose and Intent

Participation in school sponsored extracurricular activities at the school district is a privilege and not a right. Such privilege is governed by the attached policy on Testing for Alcohol and Illegal or Performance Enhancing Drugs. Alcohol and illegal or performance enhancing drug use of any kind is incompatible with participation in extracurricular activities on behalf of the school district. Students who participate in activities are respected by the student body and are expected to hold themselves as good examples of conduct, sportsmanship and training. Accordingly, student extracurricular activities participants carry a responsibility to themselves, their fellow students, their parents and their school to set the highest possible examples of conduct, which includes avoiding the use or possession of alcohol or illegal or performance enhancing drugs.

Participation in Extracurricular Activities

For the safety, health and well-being of students, the district has adopted the attached policy and this "Student Extracurricular Activities Participant Alcohol and Illegal or Performance Enhancing Drugs Contract" (the "Contract") which shall be read, signed and dated by the student, parent or custodial guardian and sponsor or coach before such student shall be eligible to practice or participate in any extracurricular activity. No student shall be allowed to practice or participate in any extracurricular activity unless the student has returned the properly signed Contract.

Student Section

I understand after having read the policy and this Contract that, out of care for my safety and health, the district enforces the rules applying to the consumption or possession of alcohol and illegal or performance enhancing drugs. As a student extracurricular activities participant, I realize that the personal decision that I make daily in regard to the consumption or possession of alcohol and illegal or performance enhancing drugs may affect my health and well-being as well as the possible endangerment of those around me and reflect upon any organization with which I am associated. If I choose to violate the policy regarding the use or possession of alcohol and illegal or performance enhancing drugs any time during the school year, I understand upon determination of that violation I will be subject to the restrictions of my participation as outlined in the policy.

Student Name: _____ ID No.: _____

Student Signature: _____ Date: _____

Parent (and Adult Students) Section

We have read and understand the policy and this Contract. We desire that the student named above participate in the district's extracurricular activities and we hereby agree to abide by all provisions of the school district's policy. We accept and consent to the method

of obtaining urine samples, testing and analyses of such specimens, and all other aspects of the program. We agree to cooperate in furnishing urine specimens that may be required from time to time. We further agree and consent to the disclosure of the sampling, testing and results as provided for in this program. This consent is given pursuant to all state and federal privacy statutes and is a waiver of rights to non-disclosure of such test records and results only to the extent of the disclosures authorized in the program.

Parent Signature: _____ Date: _____

Adult student signature: _____ Date: _____

Athletes:
Obtain the signature of each sponsor/coach for all activities in which you are involved

Sponsor/Coach Signature	Team / Activity	Date
Sponsor/Coach Signature	Team / Activity	Date
Sponsor/Coach Signature	Team / Activity	Date
Sponsor/Coach Signature	Team / Activity	Date
Sponsor/Coach Signature	Team / Activity	Date

PROTECTION OF PUPIL RIGHTS AMENDMENT

For purposes of this policy, the following definitions apply:

"Instructional material" means instructional content that is provided to a student, regardless of its format, including printed or representational materials, audio-visual materials, and materials in electronic or digital formats (such as materials accessible through the Internet). The term does not include academic tests or academic assessments.

"Invasive physical examination" means any medical examination that involves the exposure of private body parts, or any act during such examination that includes incision, insertion, or injection into the body, but does not include a hearing, vision, or scoliosis screening.

"Parent" includes a legal guardian or other person standing in loco parentis (such as a grandparent or stepparent with whom the child lives, or a person who is legally responsible for the welfare of the child). All rights provided to parents under this policy transfer to the student when the student turns 18 years old or is an emancipated minor at any age.

"Personal information" means individually identifiable information including (i) a student or parent's first and last name; (ii) a home or other physical address (including street name and the name of the city or town); (iii) a telephone number); or (iv) a Social Security identification number.

"Survey" includes an evaluation.

Inspection of Instructional Materials

All instructional materials, including teacher's manuals, films, tapes, or other supplementary instructional material that will be used in connection with any survey, analysis, or evaluation as part of any applicable program shall be available for inspection by the parents of students in the district. However, teacher lesson plans and tests are confidential records under the Oklahoma Open Records Act. After request by a parent, review of instructional materials shall be at a time mutually convenient to the teacher involved and the parent. Any complaint by a parent regarding the parent's inability to inspect any instructional material shall initially be addressed to the principal of the school where the parent's child attends. If the parent is dissatisfied with the principal's decision, then the parent may request review by the superintendent, or his or her designee, who shall have final authority over the matter.

Establishing a curriculum and determining to include or remove particular materials within the curriculum are the legal responsibilities of the board of education subject to statutory and state board of education guidelines. Nothing in this policy is intended to grant or require prior parental approval or control of materials or parental control, approval or review of teaching techniques or methods.

Surveys

No student shall be required to submit to a survey, analysis, written examination or evaluation that reveals information concerning the following without the parent's prior consent:

1. Political affiliations or beliefs of the student or the student's family;

2. Religious practices, affiliations, or beliefs of the student or the student's parent;

3. Sexual behavior or attitudes;

4. Illegal, anti-social, self-incriminating or demeaning behavior;

5. Mental or psychological problems of the student or the student's family;

6. Critical appraisals of other individuals with whom the student has a close family relationship;

7. Legally recognized privileged or analogous relationships, such as those of lawyers, physicians and ministers; and

8. Income (other than that required by law to determine eligibility for participation in a program or for receiving financial assistance under such program).

Parents may inspect, upon request, a survey created by a third party before the survey is administered or distributed to students. Review of such surveys shall be at a time mutually convenient to the principal involved and the parent. Any complaint by a parent regarding the parent's inability to inspect any such survey shall be addressed to the superintendent, or his or her designee, who shall have final authority over the matter.

The district will take appropriate steps in compliance with the Family Educational Rights and Privacy Act to protect student privacy in the event of the administration or distribution of a student survey containing one or more of the items mentioned above.

Psychiatric or Psychological Examinations

Without the prior written consent of the parent or guardian, no student who is an unemancipated minor shall be required, as part of any applicable program, to submit to psychiatric or psychological examination, testing or treatment.

Notification and Opt-Out

The district will directly notify parents, at least annually at the beginning of the school year, of the specific or approximate dates during the school year when the following activities are scheduled or expected to be scheduled:

1. Activities involving the collection, disclosure or use of personal information collected from students for the purpose of marketing or selling that information or providing that information to others for that purpose. These activities do not include information for the exclusive purpose of developing,

evaluating or providing educational products or services for or to students or educational institutions, such as:

A. College or other postsecondary education recruitment, military recruitment;

B. Book clubs, magazines, and programs providing access to low-cost literary products;

C. Curriculum and instructional materials used by elementary and secondary schools;

D. Tests and assessments used by elementary schools and secondary schools to provide cognitive, evaluative, diagnostic clinical, aptitude, or achievement information about students and the subsequent analysis and public release of the aggregate data from such tests and assessments;

E. The sale by students of products or services to raise funds for school-related or education-related activities; and

F. Student recognition programs.

2. The administration of any survey containing one or more items described above in the Surveys section of this policy; and

3. Any non-emergency, invasive physical examination or screening that is (i) required as a condition of attendance; (ii) administered by and scheduled by the school in advance; and (iii) not necessary to protect the immediate health and safety of the student or other students. This provision does not apply to any physical examination or screening that is permitted or required by state law, including physical examinations or screening that is permitted without parental notification.

Inspection of Data Collection Instruments

The district will take appropriate steps in compliance with the Family Educational Rights and Privacy Act to protect student privacy in the event of such collection, disclosure or use of personal information collected from students for the purpose of marketing or selling that information or providing that information to others for that purpose. Parents and eligible students may inspect, upon request, any instrument used in the collection of such information before the instrument is administered or distributed to students. Review of such instruments shall be at a time mutually convenient to the principal involved and the parent. Any complaint by a parent regarding the parent's inability to inspect any such survey shall be addressed to the superintendent, or his or her designee, who shall have final authority over the matter.

STUDENT ORGANIZATIONS: SPONSORSHIP AND EQUAL ACCESS FOR LIMITED STUDENT FORUMS

The board of education is committed to the proposition that student participation in student activities and organizations can advance educational goals and otherwise benefit students and that district policies should further students' opportunities for participation. In allowing and furthering student activities and organizations, the board is mindful of the dictates of the United States Constitution and the federal Equal Access Act. This policy is adopted to implement these goals.

School-Sponsored Student Organizations

The district may sponsor student organizations that the board determines are in furtherance of and consistent with the educational objectives of the district and directly related to the district's curriculum ("school-sponsored student organizations").

An organization shall be considered to be directly related to the district's curriculum if it is: (1) an extension, expansion, or application of material taught in a class; or (2) part of or an adjunct to student government, carrying out special projects or responsibilities.

School-sponsored student organizations shall have a faculty sponsor, whose teaching field, education, background or other expertise is reasonably related to the purpose and goals of the group, and who shall receive extra-duty compensation.

Application for district sponsorship shall be made by the proposed faculty sponsor and at least ten (10) students who intend to participate in the organization. Each proposed student organization will submit its membership requirements, organizational structure and provisions of a constitution or other document setting out organizational purpose and structure, subject to approval by the superintendent.

After the proposed organization and its constitution have received preliminary approval from the superintendent, the board shall review and approve or disapprove the organization for sponsorship based on the standards set out in this policy and, if requested, on an opinion rendered by the district's legal counsel that the proposed organization meets the standards of this policy.

Independent Student-Organized Groups

The senior high schools of this district shall make facilities available for meetings of independent student-organized groups (that is, student groups that are not officially sponsored by the district as stated in sections 1-5 above) subject to the following provisions. It is the district's intent to create a limited open forum under the federal Equal Access Act for independent student-organized groups pursuant to this policy.

Meetings of independent student-organized groups may be held only during non-instructional

time, including before or after school, during lunch hour (if there are no classes being conducted during the lunch hour) or other non-instructional time. No student may attend a meeting when he or she has a scheduled class or is required by school rules or schedules to be elsewhere.

All meetings shall be student-initiated and open to all students in the school. All student attendance at independent student-organized group meetings shall be voluntary.

No meeting may include any activity that is unlawful or that materially and substantially interferes with the orderly conduct of educational activities within the school.
An adult monitor, who may or may not be a school employee, shall be present at all meetings. The school employee shall be present only in the capacity of monitor and may not participate in any form or fashion in the meeting.

Independent student-organized groups may invite outside speakers to their meetings, but no non-school persons may direct, control, conduct, or regularly attend meetings.

If students wish to meet in independent student-organized groups under this policy, they must file a request to meet with the building principal that lists: 1) the room in which they wish to meet and the time during which they will meet; 2) the name of one student who will serve as the contact between the group and school authorities; and 3) the monitor who will be present. The principal shall approve a meeting if it meets the requirements of this policy and shall notify the student contact person of his or her approval or, if it does not meet the requirements of this policy, the reasons for disapproval, within two days of receipt of the request to meet. Once permitted to do so, an independent student-organized group may continue meeting for the remainder of the school year, unless it subsequently violates this or any other school policy.

In assigning meeting rooms to student organizations, the school shall not arbitrarily discriminate between or among school-sponsored and independent organizations. However, in assigning meeting rooms the school may consider the number of persons expected to attend and the needs of the organization.

Meetings of independent student-organized groups may be announced by notices posted on bulletin boards in the school. Such notices may contain only the name of the organization, the date, time and place of the meeting, and a brief identification of the subject of the meeting or a list of agenda items.

It is understood that participation in and the content and purposes of independent student-organized group meetings are neither approved nor disapproved by the district. The district is neutral as to the content of these meetings in that the district does not direct or control the student-organized group.

Notice Regarding Student Organizations and
Parental Right to Withhold Permission to Participate

The district shall provide annual notice to parents and guardians about school-sponsored student organizations in the student handbook and on the district's website. The notice shall include at least a list of the names of the clubs or organizations; their individual missions or purposes; and the names of the faculty advisors.

If school-sponsored student organizations are created or formed after the annual notice is

distributed, the district shall send supplemental notice through the district's website or by any other means it deems appropriate. Like the annual notice, the supplemental notice shall specify at least the name of the organization, its mission or purpose and the name of its faculty advisor.

Parents and guardians may notify the district that they are withholding permission for their student to join or participate in one or more extracurricular school-sponsored student organizations. However, parents and guardians may not withhold permission for student participation in clubs and organizations that are necessary for a required course of instruction.

Parents and guardians are solely responsible for preventing their student from participating in a club or organization for which they have withheld their permission. Parents and guardians are also solely responsible for retrieving their student from attendance at a club or organization for which permission has been withheld.

Nothing in this policy prevents a club or organization from meeting when a student who is not authorized to participate is present.

The district may, but is not required to provide annual (or supplemental) notice to parents and guardians about independent student-organized groups, as they are not groups directed or controlled by the district. If notice of such groups is provided, the notice shall indicate that the group is an independent student-organized group.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021

TITLE IX AND SCHOOL SPONSORED SPORTS

Congress enacted Title IX of the Education Amendments in 1972. This Federal law prohibits discrimination on the basis of sex in any education program or activity when the district is a recipient of federal financial assistance, regardless of whether federal funds are received in connection with athletics. The district is committed to the prevention and avoidance of gender discrimination in connection with school sponsored extracurricular activities, including school sponsored sports. To ensure compliance by the district's athletic program with the mandates of Title IX the board requires:

- Annual notification to all staff members regarding the district's commitment to non-discrimination in all of its programs and activities, including school sponsored sports;

- Publication of the grievance procedure applicable to complaints of discrimination in the student handbook and on the school's website with identification of the district's Title IX Coordinator, to enable parents or students to notify the board and administration of any instances of perceived discrimination in the district's programs or activities, including sports;

- The conduct of a student interest survey no less than every three (3) years to ensure that the sports offered by the district are responsive to student interest;

- Annual review of the district's sports-related facilities to ensure that the district does not discriminate on the basis of gender in the planning, construction or assignment of facilities for practice or competition;

- Annual training of all administrative and athletic staff (and other staff as appropriate) regarding their respective responsibilities for providing programs free of discrimination and reporting perceived discrimination;

- Overseeing expenditures for school sponsored sports to ensure that monies spent neither discriminate nor perpetuate past discrimination with respect to coaches' salaries, equipment, supplies, facilities or in other areas in which expenditures are made; and,

- Non-discriminatory treatment of athletes in all areas of participation in the district's sports program including, but not limited to: travel, uniforms, use of facilities, scheduling of games, equipment, supplies, spirit support, and coaching assignments.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021

HEALTH FOR STUDENT ATHLETES

Although there are numerous benefits to participating in school sponsored sports, student athletes may also experience adverse health consequences of such participation. The board of education recognizes that these injuries can have serious consequences if not properly evaluated and treated. Therefore, consistent with state law, the district will inform and educate student athletes and their parents/guardians of the nature and risk of sudden cardiac arrest and concussions or head injuries, including information on the dangers associated with continuing to play after collapsing without a head injury or after receiving a head injury.

Specifically, on an annual basis, and prior to a student athlete's participation in any athletic practices or competitions, information sheets shall be distributed to the student and his or her parent/guardian. Attached to the information sheet shall be an acknowledgement form which the student and his or her parent/guardian must sign to verify that they have read the information sheets and understand the content and warnings. The completed acknowledgement forms shall be returned to the principal's office prior to the student athlete's participation in practice or competition during that school year. The student- athlete may not practice or compete until the form has been received.

If the district's coaching personnel suspect that a student athlete has sustained a concussion or head injury during a practice or game, or if the student collapses or faints without a head injury, the coach shall immediately remove that student from participation and direct the student to obtain an appropriate examination by a licensed health care provider selected by the student's parent or legal guardian. The board of education has defined a licensed health care provider as follows: M.D.-Medical Doctor; D.O.-Doctor of Osteopathy; and LATs-Licensed Athletic Trainers. If the student has sustained a head injury, this licensed health care provider must be trained in the evaluation and management of concussions. The district shall not be financially responsible for any health care bills associated with the examination.

After suffering a concussion, a student's physical and cognitive activities should be carefully managed and monitored by the licensed health care professional. Any student athlete removed from participation shall not be allowed to participate in practices or games until he or she is evaluated by a licensed health care provider and receives the provider's written clearance to return to participation, a copy of which shall be provided to the district.

Reference: OKLA. STAT. tit. 70, § 24-155, 156

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: September 13, 2021

EMERGENCY MEDICAL SERVICES AT DISTRICT ATHLETIC PRACTICES, EVENTS OR ACTIVITIES

As required by OKLA. STAT. tit. 70, § 27-104 (*Riley's Rule*), prior to the beginning of the 2021-2022 school year, the board of education shall coordinate with emergency medical service providers that serve the area in which the district is located and develop an Emergency Action Plan ("Plan") for each facility and athletic practices, events or activities held at district facilities.

The Plan shall . . .

1. include maps and directions with appropriate contact information for emergency medical services;
2. assign a medical administrator who is a current district employee (e.g., coach, administrator, or athletic director);
3. define responsibilities and personnel on-site, both medical and school officials;
4. include a list of medical equipment that is available and location of the nearest automated external defibrillator — if available;
5. be posted in each district facility;
6. be distributed to all school officials involved in athletic practices, events or activities held at school district facilities; and
7. specifically document actions taken after any emergency to evaluate for debriefing purposes and to determine if there are necessary changes to the Plan.

The Plan shall be reviewed, updated, and rehearsed annually with school officials and local emergency medical services providers and placed on file with both the district and the emergency medical services provider. The Plan shall also be updated to reflect any potential significant changes that would affect implementation of the Plan.

Prior to each athletic event or activity where there are athletes participating from visiting schools, the Plan shall be digitally transmitted to the visiting school administrator or coach by the superintendent or designee, or it shall be posted on the district's website.

Reference: OKLA. STAT. tit. 70, § 27-104 (2021)

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: September 13, 2021

ATHLETIC EVENTS
BROADCASTING AND STREAMING RIGHTS

Beginning with the 2021-2022 school year and notwithstanding any policy of a school athletic association,[1] in all of the district's regular season high school athletic competitions in this state, the visiting team shall have the same rights to radio broadcast, video stream, and provide telegraphic play-by-play accounts as the district (home team), as long as the visiting team has either of the following:

1. A valid agreement to broadcast, video stream and/or provide telegraphic play-by-play accounts between a media organization and the school's board of education; or

2. The visiting team has a curricular program for students that typically provides streaming for the team's home games.

Pursuant to OKLA. STAT. tit. 70, § 27-102, a school athletic association is any private organization or association which charges the school or school district a membership fee, retains a portion of revenue generated by the interscholastic activities or contests of the member schools, and provides the coordination, supervision and regulation of the interscholastic activities and contests of the member schools.

The provisions of this policy shall apply to contracts for the rights to radio broadcast, video stream, and provide telegraphic play-by-play accounts entered into or renewed on or after July 1, 2021.

Reference: OKLA. STAT. tit. 70, § 27-105; OKLA. STAT. tit. 70, § 27-102

[1]Any private organization or association which charges the school or school district a membership fee, retains a portion of revenue generated by the interscholastic activities or contests of the member schools, and provides the coordination, supervision and regulation of the interscholastic activities and contests of the member schools.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021

CONDUCT AT STUDENT PERFORMANCES

This policy defines expected behavior of participants at student performances.

This policy addresses performances both on and off campus for all student groups, including but not limited to the following: bands, cheerleaders, choruses, dance troupes, drill teams, theater companies, flag teams, drum majors, talent shows, mascots, and other ensembles. Membership or participation within these extracurricular activities is a privilege and students are expected to demonstrate appropriate and respectful behavior. The fact that an activity is not specifically listed is not a valid excuse for acting in a way that is not respectful of the district and consistent with its code of student conduct.

Suggestive, offensive, vulgar verbiage of musical lyrics and/or choreography is inappropriate. Because student performances are an integral part of the curriculum, performances (including music, theatre, and choreography) must be pre-approved by sponsors and administrative representatives before any practices and/or competitions begin. Lewd gestures, inappropriate comments, foul language, and suggestive or vulgar movements are among those behaviors which are not acceptable while practicing or performing as a member of a school group.

All behavior exhibited by students should reflect high standards. The sponsor has the responsibility to determine acceptable behavior under the direction of the school principal.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 9, 2021; Revised: August 12, 2024

STUDENT DIABETES CARE AND MANAGEMENT

Purpose

The purpose of this policy is to implement the requirements of the Diabetes Management in Schools Act ("Act"), OKLA. STAT. tit. 70 § 1210.196.1 et seq.

Definitions

For purposes of this policy, these terms have the following definitions:

"Diabetes medical management plan" means the document a student's personal health care team develops that identifies the health services the student may need at school

"Personal health care team" means the team responsible for managing a student's diabetes and includes the principal or designee, the school nurse (if assigned to the school), the assistant, if any, the parent or guardian of the student, and to the extent practicable, the physician responsible for the student's diabetes treatment.

"School nurse" means a certified school nurse, a registered nurse contracting with the district or a public health nurse.

"Volunteer diabetes care assistant" means a district employee who has volunteered to be a diabetes care assistant and successfully completed the training required by this policy and state law.

Policy

Any district employee aware of a student who has diabetes-related needs while at school or while participating in school activities will promptly advise the principal or designee. The parent of any student who will have diabetes-related needs at school or in school activities should promptly advise the school principal or designee.

A personal health care team will develop a written Diabetes Medical Management Plan ("Plan") for each student who will seek care for diabetes while at school or while participating in a school activity. The Plan will identify the health services the student may need at school. Each member of the student's personal health care team, including the parent, will sign the Plan. The personal health care team will review the Plan at least annually. The school nurse at the school in which the student is enrolled, if any, will assist the student with the management of his or her diabetes care as provided in the Plan. If the school does not have an assigned school nurse, the principal will make a reasonable effort to find one or more district employees willing to serve as a volunteer diabetes care assistant ("Assistant") to assist the student with diabetes care as provided in the student's Plan. The principal will make a reasonable effort to ensure that a school nurse or Assistant is available

at the school to assist the student when needed. The district will not restrict the assignment of a student with diabetes to a particular school based on the presence of a school nurse or assistant.

District personnel will request that the parent provide written authorization for the school nurse or assistant to have access to the student's physician at all times. The district will maintain the Plan and related documentation as student health records.

Before undertaking responsibilities as an assistant, a volunteer must first complete training provided by the school nurse or the State Department of Health in accordance with the Act. The training will include instruction in the following:

- Recognizing the symptoms of hypoglycemia and hyperglycemia;
- Understanding the proper action to take if the student's blood glucose is outside the range indicated in the Plan;
- Understanding the details of the Plan;
- Performing finger sticks to check blood glucose levels, check urine ketone levels and record the results of those checks;
- Properly administering insulin and glucagon and recording the results of the administration;
- Recognizing complications that require the assistant to seek emergency assistance; and
- Understanding the recommended schedules and food intake for the student's meals and snacks, the effect of physical activity on blood glucose and the proper action to be taken if the student's schedule is disrupted.

To continue as an Assistant, the volunteer must annually demonstrate competency in the above training. The school nurse, principal or designee will maintain a copy of the training guidelines and the records associated with the training.

With parent permission, the district will provide each district employee responsible for supervising or transporting a student with diabetes a form with the following information:

- Student's name;
- Telephone number of a contact person in case of an emergency involving the student; and
- Potential emergencies that may occur due to the diabetes and appropriate responses to such emergencies.

Any district employee provided the above information will be informed of applicable health privacy policies.

In accordance with his or her individual Plan and this policy, a student may attend to the management of his or her diabetes, which may include:

- Performing blood glucose level checks;
- Administering insulin through the student's insulin delivery system;
- Treating hypoglycemia and hyperglycemia;
- Unless changed in accordance with this policy, possessing on his or her person at any time, any supplies or specialized equipment necessary to monitor and care for his or her diabetes; and
- Otherwise attending to the management of his or her diabetes in the classroom, any area of the school or grounds, or at any school related activity.

The school administration will provide a private area where the student can attend to his or her diabetes-related needs.

If a student uses a device providing continuous glucose monitoring with electronic access to glucose numbers, a school nurse, diabtes care assistant, or other school staff may access electronically monitored glucose numbers for the student *with written permission of the student's parent or guardian.* To monitor glucose numbers, staff members with appropriate permissions may download the necessary electronic application(s) or software to access electronically monitored glucose numbers to a school electronic device, or their personal electronic device in the absence of a school-provided device.

A school nurse, diabetes care assistant, or other school staff shall not be responsible for and shall not be subject to disciplinary action for lack of any monitoring of electronic glucose numbers outside of school hours or school-sponsored activities.

Students who manage their diabetes and personally possess the necessary specialized equipment and supplies under this policy are prohibited from sharing or playing with their equipment or supplies. If a student engages in these activities, the parent will be contacted and a meeting of the personal health care team will be scheduled. The district is not responsible for safeguarding the specialized equipment or supplies of a student who personally possesses those items.

Students with diabetes are encouraged to wear Medic Alert bracelets or necklaces.

No district employee will be subject to any penalty or disciplinary action for refusing to serve as an assistant. No district employee will be subject to any disciplinary proceeding resulting from any action taken in compliance with this policy. Any employee acting in accordance with this policy and law will be immune from civil liability unless the employee's actions rise to the level of reckless or intentional conduct. A school nurse will not be held responsible or subject to disciplinary action for the actions of an assistant.

The District will provide in either digital or printed format type 1 diabetes informational materials to parents/guardians of students when a student is initially enrolled in the District and when the student enters 6th grade. The diabetes informational materials provided will conform to the type 1 diabetes informational materials to be developed by the Oklahoma

State Department of Education.

Reference: OKLA. STAT. tit. 70, § 1210.196

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: September 13, 2021; Revised: August 14, 2023; August 12, 2024

SUICIDE AWARENESS, TRAINING, AND PREVENTION

PURPOSE: Suicide is a leading cause of death among young people. The health and well-being of students is of utmost importance to the school district, and the school district is committed to actively preventing suicide through awareness, effective training, outreach, and prevention. This policy outlines strategies, procedures, and resources for preventing suicide, identifying potentially-suicidal students and high-risk behavior, as well as intervention and postvention mechanisms.

SCOPE: This policy is applicable to actions that occur in school district buildings, premises, or property, including vehicles, at school-sponsored functions and activities, and governs the entire school district community, including, but not limited to, staff, students, parents and guardians, and volunteers.

SUICIDE PREVENTION TRAINING: The school district shall provide training to all staff members in their first year employed by the school district, and then no less than once every fifth academic year, addressing suicide awareness and prevention. The training will include evidence-based approaches to suicide prevention or curriculum made available or approved by the Department of Mental Health and Substance Abuse Services, including how to recognize changes in behavior that may be indicative of distress, how to approach students to discuss concerns, and how to refer a parent or student to appropriate resources.

Beginning with the 2022-2023 school year, the school district may provide training to address suicide awareness and prevention to 7th through 12th graders.

PUBLICATION AND DISTRIBUTION: The course outline for the training curriculum shall be made available on the school district's website.

NOTIFYING PARENTS AND LEGAL GUARDIANS: Teachers, counselors, principals, administrators and other school personnel, upon determining a student is at risk for attempting suicide, shall notify the parents or legal guardians of the student immediately upon determining such risk exists.

IMMUNITY FROM EMPLOYMENT DISCIPLINE AND CIVIL LIABILITY: Teachers, counselors, principals, administrators and other school personnel shall be immune from employment discipline and any civil liability with respect to the following actions:

1. Calling 9-1-1, law enforcement, or the Department of Human Services if they believe a student poses a threat to themselves or others or if a student has committed or been the victim of a violent act or threat of a violent act;

2. Providing referral, emergency medical care or other assistance offered in good faith to a student or other youth; or

3. Communicating information in good faith concerning drug or alcohol abuse or potential safety threat by or to any student to the parents or legal guardians of the student, law enforcement officers or health care providers.

NO SPECIFIC DUTY OF CARE OR CAUSE OF ACTION: The training required by this policy, or lack thereof, shall not be construed to impose any specific duty of care. No person shall have a cause of action for any loss or damage caused by any act or omission resulting from the implementation of this policy or resulting from any training, or lack thereof, required by this policy, unless the loss or damage was caused by willful or wanton misconduct.

COMMUNITY INTERVENTION AND PREVENTISON SERVICES: The school district may enter into agreements with designated youth services agencies for the provision of intervention and prevention services.

Reference: OKLA. STAT. tit. 70, § 24-100.7; OKLA. STAT. tit. 70, § 24-100.7

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: September 13, 2021

ASVAB TESTING AND STUDENT ACCESS TO MILITARY RECRUITERS

It is the policy of the board of education to take part in testing programs with the aim of providing all students with information designed to help them recognize their talents and to assist them in planning their education and career paths. Therefore, the district will provide students in grades ten through twelve (10–12) an opportunity to take the Armed Services Vocational Aptitude Battery test (ASVAB), or an alternative assessment as provided below, and to consult with a military recruiter.

The ASVAB or alternative assessment will be scheduled during normal school day hours and at a time that limits conflicts with extracurricular activities. The district will provide to students and their parents or legal guardians in grades ten through twelve (10–12) the date, time, and location of the scheduled administration of the ASVAB or alternative assessment.

At the discretion of the board of education, the district may administer an alternative assessment in lieu of the ASVAB, provided the alternative assessment meets the following criteria:

1. it assesses a student's aptitude for success in a career field other than a career field that requires postsecondary education;
2. is free to administer;
3. requires minimal training and support of school faculty and staff to administer the test; and
4. provides each student with a professional interpretation of the test results that allows the student to explore occupations that are consistent with each student's interests and skills and to develop strategies to attain career goals.

Regardless of whether the district offers the ASVAB or an alternative assessment, the district will permit each student taking the assessment with an opportunity to consult with a military recruiter. Individual student meetings with recruiters will be permitted on dates and times approved by the building principal or the principal's designee, which will be advertised to students and their parents and legal guardians.

Reference: OKLA. STAT. tit. 70, § 1210.508-5.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: September 13, 2021; Revised: August 14, 2023; August 12, 2024

TRANSGENDER AND NONBINARY STUDENT RECORDS

Definitions

Transgender and nonbinary students may use different terms to describe their lives and experiences of gender. Terminology and language may differ and evolve based on region, language, race or ethnicity, age, culture, and many other factors. These terms often mean different things or refer to different experiences. District employees should use the terms that students use to describe themselves, and avoid terms that make these students uncomfortable.

The following definitions are not provided for the purpose of imposing labels, but rather to assist in understanding this policy and the obligations of district personnel. Students may or may not use these terms to describe themselves or their experiences.

"Gender Identity" is a person's deeply held knowledge of their own gender, which can include being a man, woman, another gender, or no gender. Gender identity is an intimate part of a person's identity. One's gender identity may or may not align with society's expectations for sex assigned at birth (e.g., male, female, or intersex).

"Gender Expression" refers to one's expression of gender, whether through hair styles, makeup, or personal fashion, which changes over the course of a lifetime.

"Transgender/Trans" is an adjective used to describe a person whose gender identity differs from the sex they were assigned at birth. A trans woman is a woman whose sex was assigned male when she was born. A trans man is a man whose sex was assigned female when he was born. Some transgender people are neither male nor female and may use terms like nonbinary to describe their gender.

"Cisgender" is an adjective describing a person whose gender identity corresponds with the gender that society typically associated with the sex they were assigned at birth. For example, a cisgender woman's sex was assigned female at birth, and she identifies her gender as female. As another example, a cisgender man's sex was assigned male at birth, and he identifies his gender as male.

"Gender Nonconforming" is a term sometimes used to describe people whose gender expression differs from social expectations, such as "feminine boys," "masculine girls," and people who are perceived as androgynous in some way. Being gender nonconforming is distinct from being transgender, although some trans people may consider themselves to be gender nonconforming. For example, a cisgender woman who has short hair and likes sports might consider herself nonconforming but may not identify as transgender.

"Independent Contractor" means an individual, organization, or entity that is engaged by and/or contracted by a school district to provide services or instruction, whether directly or indirectly, to students or within a school district on a temporary or contractual basis and is not an employee of the school district.

"Nonbinary" is a term used to refer to people whose gender identity is not exclusively male or female, including those who identify with a different gender, a combination of genders, or no gender. Nonbinary may be considered a subset of transgender or a distinct identity. Other similar or more specific terms may include genderqueer, gender fluid, agender, or Two-Spirit (for Native American students).

"Sexual Orientation" refers to a person's romantic and/or sexual attraction to other people. This includes being straight, gay, bisexual, queer, asexual, or many other terms used to describe sexual orientation. This is different and distinct from gender identity.

"Transition" is the process through which a person begins to live according to their gender identity. This process is different for everyone, and it may or may not involve specific medical treatments or changes to official documents. There is no single step or set of steps that an individual must take in order to have their gender identity affirmed and respected.

"LGBTQ+" is an acronym that stands for lesbian, gay, bisexual, transgender, and questioning (or queer). The acronym sometimes includes an "I" for intersex, an "A" for asexual, a "P" for pansexual, and other letters. A "+" is sometimes placed at the end of the acronym to signal that there are additional letters/identities that fall under a similar umbrella.

"QTBIPOC" is an acronym that stands for queer/trans, black, indigenous, and people of color.

Privacy and Confidentiality

The district will ensure that all personally identifiable and medical information relating to transgender and nonbinary students is kept confidential in accordance with applicable state, local, and federal privacy laws. District employees and staff shall not disclose any information that may reveal a student's gender identity to others, unless the student, parent, or legal guardian has authorized such disclosure, or there is another compelling need.

Prior to disclosing any such information about a transgender or nonbinary student, district employees will work with the student and any parent or legal guardian to discuss the appropriate manner, time, and message of the disclosure. This will include providing the student with appropriate support services they may need to make the disclosure in a safe and supportive environment.

Transgender and nonbinary students have the right to discuss and express their gender identity openly and to decide when, with whom, and how much private information to share. The fact that a student chooses to use a different name, to transition at school, or to disclose their gender identity to staff, educators, or other students does not authorize district employees to disclose a student's personally identifiable or medical information to anyone. No district employee or independent contractor shall encourage, coerce, or attempt to encourage or coerce a minor child to withhold information from the student's parent/guardian.

The 2023 Oklahoma "Parents' Bill of Rights" (OAC 210:10-2-1, et seq.), requires the district its employees and independent contractors to disclose to a student's parent/guardian any information known to the district or its employees regarding material changes reasonably expected to be important to the parent/guardian regarding their student's health, social, or psychological development, including identity information. Disclosure of this information shall occur within 30 days of learning the information. "Identity information" means information including, but not limited to, any names or pronouns used by a student at school and any social transition or other transition to a gender that differs from the student's sex. "Sex" means the physical condition of being male or female based on genetics and physiology, as identified on the individual's original birth certificate.

Use of Preferred Name, Pronoun, or Gender

All adult students have the right to be addressed by a name, pronouns, and other terms that correspond with their gender identity. This respect should not depend on whether a student has access to a legal name change or gender marker change on official documents. The district and its employees should always use the pronouns and name with which a student identifies or requests. The district and its employees are expected to respect and use a student's name and pronouns, once they have been made aware of said student's correct information.

A minor student has the right to be addressed by a name, pronouns, and other terms that correspond with their gender identity, provided their parent/guardian has provided written consent to the district for the student to be addressed by a preferred name or pronoun that may be different from the student's original birth certificate. This respect should not depend on whether a student has access to a legal name change or gender marker change on official documents. The district and its employees are expected to respect and use a student's name and pronouns, once they have been made aware of said student's correct information and parent/guardian consent for the student to use a preferred name or pronoun.

Student Records

The district shall maintain an official, permanent record with the legal name and gender appearing on the student's birth certificate. Absent authorization from the State Board of Education, the district will not modify sex or gender designations on any prior year records. On all other school-related records or documents, however, at the request of or with the consent of the student's parent/legal guardian as appropriate (unless the student is over 18), the district will use a student's requested name and gender pronouns. This would include physical records and documents, diplomas and other certificates of advancement, electronic records and documents, and school IDs. Reasonable efforts will be made to update student records with the student's requested name and gender pronoun or gender marker, and not to circulate records with the student's assigned birth name or gender marker. The district will also make reasonable efforts to also identify routine areas where a student's privacy could be violated by the improper usage of the legal name and gender marker. These include but are not limited to pre-printed labels, standardized tests, student IDs or library cards, school photos, notices from the main office, attendance slips, grade books, posted lists of student names, lesson plans, seating charts and roll sheets used by substitute teachers, and any other places where students' names are commonly written.

In order to protect a student's privacy, and to prevent accidental disclosure of a student's

status, the district will maintain the official, permanent record in a secure location, separate from the student's other records. If the official record is maintained electronically, similar security measures shall be implemented to protect student privacy.

When a student or parent/legal guardian presents the district with documentation of a court-ordered legal name and/or gender change, the district will then change the student's official, permanent pupil record from the current year, to reflect the student's new legal name and gender, in a timely manner.

The district will inform the State Board of Education of any pending litigation or any court order related to altering sex or gender designations in school records. The district will provide such notification to the executive secretary of the State Board within 14 calendar days of the district's knowledge of such litigation.

Contact Information

Any student who has experienced gender-based harassment, discrimination, bullying, or similar misconduct, or has additional questions regarding the information contained in this policy should contact:

Special Services Director
Title IX Coordinator
Skiatook Public Schools
355 Osage Street
Skiatook, OK 74070
(918) 396-1792

Assistant Superintendent
Bullying Coordinator
Skiatook Public Schools
355 Osage Street
Skiatook, OK 74070
(918) 396-1792

Outside Assistance may be obtained from:

U.S. Department of Education
Office for Civil Rights
One Petticoat Lane
1010 Walnut Street, Suite 320
Kansas City, MO 64106
(816) 268-0550
(816) 268-0599 (Fax)
(877) 521-2172 (TTY)
E-mail: OCR.KansasCity@ed.gov

Reference: OAC 210: 10-2-1
OAC 210: 10-1-24

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 10, 2022; Revised: August 14, 2023

STUDENT MENTAL HEALTH CRISIS PROTOCOL

As required by OKLA. STAT. tit. 70, § 24-159, the District will develop and maintain a protocol for responding to students in mental health crisis with the goal of preventing student suicide, self-harm, and harm to others.

Provider Partners

The District shall develop, maintain and implement its student mental health crisis protocol (the "Protocol") in partnership with one or more local mental health treatment providers certified by the Oklahoma Department of Mental Health and Substance Abuse Services ("Provider Partner(s)"). At least one Provider Partner that participates in the Protocol shall meet the following criteria:

A. The provider must have the ability to serve all school-aged children regardless of insurance status; and

B. The provider must have the ability and certification to provide mental health crisis services in the region where students attend school.

Contents of Protocol

The District's Protocol shall:

A. Provide a definition of mental health crisis involving potential for harm to self or others.

B. Document how mental health crises may be identified by school administrators, teachers, support employees, and school-based mental health professionals.

C. Outline nonpunitive steps to safeguard student health and safety in response to an immediate or potential mental health crisis.

D. Identify local treatment providers and resources available to support students and families in mental health crisis and ensure appropriate referrals to treatment.

E. Outline a process for ensuring parent and caregiver notification and involvement during an actual or potential mental health crisis. In the event that a student who is under eighteen years of age is identified as being in or at risk of a mental health crisis, the Protocol shall call for District employees to inform the student's parent or legal guardian and offer the treatment referral information contained in the Protocol. The Protocol shall further provide that

parent or legal guardian consent shall be required for any subsequent action taken by the District as part of the protocol except in cases of immediate and life-threatening danger to self or others.

F. Document how student privacy will be protected in compliance with applicable state and federal laws, including, but not limited to the Health Insurance Portability and Accountability Act ("HIPAA") and the Family Educational Rights and Privacy Act ("FERPA").

Working Agreement

The Board of Education and each of the District's Provider Partner(s) shall enter into a working agreement establishing all obligations of the parties under the established Protocol and a strategy for regularly reviewing its effectiveness using anonymous, nonidentifiable data (the "Working Agreement").

Review and Updates

Not less than every two years, the District and its Provider Partner(s) shall jointly review the Protocol and Working Agreement and consider whether updates to the Protocol are necessary to better meet the needs of students. This process shall include a review of information gathered from the Oklahoma Prevention Needs Assessment Survey or an alternative survey conducted by the District as provided for in OKLA. STAT. tit. 70, § 24-158, to the extent the District has participated in such a survey and such information is available.
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State Agency Review

The District will submit the most recent version of its Protocol and Working Agreement to the Oklahoma State Department of Education, which will in turn submit those documents to the Oklahoma Department of Mental Health and Substance Abuse Services. These agencies may require revisions to the Protocol in order to ensure compliance with applicable laws/regulations and/or established evidence-based practices.

Access/Training

The District will provide administrators, teachers, support employees and school-based mental health providers with ready access to the Protocol and regular training regarding the Protocol. In addition to regular training regarding the Protocol, the District shall require a training program for teachers which shall emphasize the importance of recognizing and addressing the mental health needs of students. This program shall be completed the first year a certified teacher is employed by the District, and then once every fifth academic year.

Reference: OKLA. STAT. tit. 70, §§ 24-158 and 24-159; OKLA. STAT. tit. 70, § 6-194.3.

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 10, 2022

MENTAL HEALTH ACCOMMODATIONS

Purpose

Pursuant to OKLA. STAT. tit. 70, § 3-169, beginning with the 2023-2024 school year, the parent or guardian of a student shall have the option to disclose to the District prior to enrollment that the student has received certain types of mental health treatment so that a meeting can be scheduled to discuss whether the student requires accommodations.

Definition

For purposes of this policy, a "mental health facility" is defined as a public or private hospital or related institution offering or providing inpatient mental health services, a public or private facility accredited as an inpatient or residential psychiatric facility by the Joint Commission on Accreditation of Healthcare Organizations, or a facility operated by the Department of Mental Health and Substance Abuse Services and designated by the Commissioner of the Department of Mental Health and Substance Abuse Services as appropriate for the inpatient evaluation or treatment of minors.

Procedures

The following procedures apply to parent disclosures of mental health treatment and the holding of meetings to discuss accommodations that may be needed as a result of a student's mental health condition:

A. Prior to the enrollment of a student who has received inpatient or emergency outpatient services from a mental health facility in the previous twenty-four (24) months, the parent of that student shall have the option (but is not required) to disclose the student's history of mental health treatment to the District.

B. If a student's parent/guardian makes a disclosure to the District as set forth above, the District will schedule a meeting to determine whether the student is in need of any accommodations, including, but not limited to, an individualized education program ("IEP"). The participants in this meeting shall include:

   1. The parent or legal guardian of the student.

   2. One or more designated District employees, which may include members of the student's IEP team.

   3. One or more representatives of the mental health facility.

C. The meeting required by this policy may take place in person, via

teleconference, or via videoconference.

D. The meeting shall be conducted in accordance with applicable state and federal laws, including, but not limited to the Health Insurance Portability and Accountability Act ("HIPAA") and the Family Educational Rights and Privacy Act ("FERPA").

Reference: OKLA. STAT. tit. 70, § 3-169; OKLA. STAT. tit. 43A, § 5-502.

RESOURCE INFORMATION ON STUDENT IDENTIFICATION CARDS

Pursuant to Senate Bill 1307 (2022), beginning July 1, 2023, for those students in grades seven (7) through twelve (12) who are issued student identification cards, such cards shall have printed on either side the telephone number for the National Suicide Prevention Lifeline, which can be accessed by calling or texting 988. The District, at its discretion, may also print on either side of student identification cards the telephone number of the Crisis Text Line, which can be accessed by texting "HOME" to 741741. These requirements shall apply to a student identification card issued for the first time or issued to replace a damaged or lost card.

On July 1, 2023, should the District have a supply of unissued student identification cards that do not comply with the paragraph above, the District may issue non-compliant cards out of this supply until the supply is depleted.

Reference: OKLA. STAT. tit. 70, § 24-100.10

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: August 10, 2022

SAVE WOMEN'S SPORTS ACT

Pursuant to SB002 (2022), prior to the beginning of each school year, the parent or legal guardian of a student who competes on a school athletic team shall sign an affidavit acknowledging the biological sex of the student at birth. If a student is 18 years of age or older and competes on a school athletic team, the student shall sign an affidavit acknowledging his or her biological sex at birth.

If there is any change in the status of the biological sex of a student submitting an affidavit pursuant to this policy, the affiant shall notify the school within 30 days of such change.

School athletic teams shall be expressly designated as one of the following based on biological sex:

1. "Males," "men," or "boys";
2. "Females," "women," or "girls"; or
3. "Coed" or "mixed."

School athletic teams designated for "females," "women," or "girls" shall not be open to students of the male sex.

Reference: OKLA. STAT. tit. 70 § 27-106

The Save Women's Sports Act (OKLA. STAT. tit. 70, § 27-106(D)) requires as follows:

> Prior to the beginning of each school year, the parent or legal guardian of a student who competes on a school athletic team shall sign an affidavit acknowledging the biological sex of the student at birth. If the student is eighteen (18) years of age or older, the student who competes on a school athletic team shall sign an affidavit acknowledging his or her biological sex at birth. If there is any change in the status of the biological sex of the student, the affiant shall notify the school within thirty (30) days of such change.

Section 426 of Title 12 of the Oklahoma States provides that "whenever under any law of this state or under any rule, order or requirement made pursuant to the law of this state, any matter is required or permitted to be supported, evidenced, established or proved by the sworn statement, declaration, verification, certificate, oath or affidavit, in writing of the person making the same, the matter may with like force and effect be supported, evidenced, established or proved by the unsworn statement in writing of the person made and signed under penalty of perjury setting forth the date and place of execution and that it is made under the laws of this state."

Skiatook Public Schools
Declaration of Biological Sex at Birth

The undersigned, under the penalties of perjury, declares:

1. _____(Name of Student) participates on a Skiatook Public Schools athletic team.

2. The biological sex at birth of the student named herein was (check one):

   ____Male

   ____Female

3. I further understand Oklahoma law requires me to notify the school within 30 days of any change in status of the biological sex designated above.

4. I state under penalty of perjury under the laws of Oklahoma that the foregoing is true and correct.

_____ _____

(Date and Place) (Signature)

_____

(Printed Name)

SKIATOOK PUBLIC SCHOOLS BOARD OF EDUCATION POLICY	*Students* Adopted: September 11, 2023

GRADUATION ATTIRE

It is the policy of this school district to allow enrolled students of a federally recognized Indian tribe or the tribe of another country to wear tribal regalia during the district's official graduation ceremonies, whether held at a public or private location. Nothing contained in this policy shall limit or alter the authority of district personnel to regulate student behavior pursuant to the School Safety and Bullying Prevention Act and any existing student conduct and behavior policies of the district.

For the purposes of this policy, tribal regalia means traditional garments, jewelry, other adornments such as an eagle feather, an eagle plume, a beaded cap, a stole or similar objects of cultural and religious significance worn by members of a federally recognized Indian tribe or the tribe of another country.

Tribal regalia does not include any firearm or other weapon. Tribal regalia does not include any object that is otherwise prohibited by federal law, except in compliance with an appropriate federal permit. The District may adopt guidelines which specify the characteristics of any garment, jewelry, other adornment, or object that the district finds will endanger the safety of a student or others or interfere with graduation ceremonies if worn by a student.

Reference: OKLA. STAT. tit. 70, § 24-160